

SOLICITATION, OFFER, AND AWARD <i>(Construction, Alteration, or Repair)</i>	1. SOLICITATION NUMBER	2. TYPE OF SOLICITATION	3. DATE ISSUED	PAGE	OF	PAGES
	W912P525RA001	☐ SEALED BID (IFB) ☐ INVITATION FOR BID ☒ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	04 FEB 2025	1		89

IMPORTANT - The "offer" section on the reverse must be fully completed by offeror.

4. CONTRACT NUMBER	5. REQUISITION/PURCHASE REQUEST NUMBER	6. PROJECT NUMBER
		118339
7. ISSUED BY	CODE	8. ADDRESS OFFER TO
W072 ENDIST NASHVILLE KO CONTRACTING DIVISION, 801 BROADWAY RM A604 NASHVILLE, TN 37203-1070 UNITED STATES ANDREW ROTH, EMAIL: ANDREW.R.ROTH@USACE. ARMY.MIL TELEPHONE: (615) 736-7793	W912P5	W072 ENDIST NASHVILLE KO CONTRACTING DIVISION, 801 BROADWAY RM A604 NASHVILLE, TN 37203-1070 UNITED STATES
9. FOR INFORMATION CALL:	a. NAME	b. TELEPHONE NUMBER <i>(Include area code) (NO COLLECT CALLS)</i>
	ANDREW ROTH	(615) 736-7793

SOLICITATION

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid and "bidder".

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS *(Title, identifying number, date)*

PROJECT TITLE: CHICKAMAUGA LOCK REPLACEMENT APPROACH WALL AND DECOMMISSIONING
PROJECT LOCATION: CHATTANOOGA, TENNESSEE

TYPE OF CONTRACT: FIRM FIXED-PRICE CONSTRUCTION CONTRACT

DISCLOSURE OF MAGNITUDE OF THE PROPOSED CONSTRUCTION PROJECT: \$250,000,000 AND \$500,000,000

NORTH AMERICAN INDUSTRY CLASSIFICATION SYSTEM CODE (NAICS) 237990, OTHER HEAVY AND CIVIL ENGINEERING CONSTRUCTION

SIZE STANDARD: \$45.0 MILLION

TYPE OF SET ASIDE: THIS IS A FULL AND OPEN PROCUREMENT. IN ACCORDANCE WITH FEDERAL ACQUISITION REGULATION 19.1307, THIS PROJECT REQUIRES THE HUBZONE 10% PRICE EVALUATION. PROPOSALS RECEIVED VIA EMAIL OR FACSIMILE WILL NOT BE CONSIDERED. GOVERNMENT WILL NOT REIMBURSE OFFERORS FOR ANY EFFORT EXPENDED IN RESPONDING TO THIS REQUEST FOR PROPOSAL.

11. The contractor shall begin performance within <u>60</u> calendar days and complete it within <u>2008</u> calendar days after receiving ☐ award, ☒ notice to proceed. This performance period is ☒ mandatory ☐ negotiable. (See <u>FAR 52.211-10</u>).	
12a. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? <i>(If "YES", indicate within how many calendar days after award in Item 12b.)</i> ☒ YES ☐ NO	12b. CALENDAR DAYS 10

13. ADDITIONAL SOLICITATION REQUIREMENTS:

a. Sealed offers in original and _____ copies to perform the work required are due at the place specified in Item 8 by 02:00 PM *(hour)* local time 07 APR 2025 (date). If this is a sealed bid solicitation, offers will be publicly opened at that time. Sealed envelopes containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.

b. An offer guarantee ☒ is, ☐ is not required.

c. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.

d. Offers providing less than 120 calendar days for Government acceptance after the date offers are due will not be considered and will be rejected.

OFFER (Must be fully completed by offeror)

14. NAME AND ADDRESS OF OFFEROR (Include ZIP Code)		15. TELEPHONE NUMBER (Include area code)	
		16. REMITTANCE ADDRESS (Include only if different than Item 14.)	
CODE	FACILITY CODE		

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within _____ calendar days after the date offers are due. (Insert any number equal to or greater than the minimum requirement stated in Item 13d. Failure to insert any number means the offeror accepts the minimum in Item 13d.)

AMOUNTS



18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGMENT OF AMENDMENTS

(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

AMENDMENT NUMBER										
DATE										

20a. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	20b. SIGNATURE	20c. OFFER DATE
--	----------------	-----------------

AWARD (To be completed by Government)

21. ITEMS ACCEPTED:

22. AMOUNT		23. ACCOUNTING AND APPROPRIATION DATA	
24. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)	ITEM	25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO THE UNITED STATES CODE AT ☐ 10 U.S.C. 3204(a) () ☐ 41 U.S.C. 3304(a) ()	
26. ADMINISTERED BY		27. PAYMENT WILL BE MADE BY	

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE

☐ 28. NEGOTIATED AGREEMENT (Contractor is required to sign this document and return _____ copies to issuing office.) Contractor agrees to furnish and deliver all items or perform all work requirements identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications incorporated by reference in or attached to this contract.		☐ 29. AWARD (Contractor is not required to sign this document.) Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.	
30a. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN (Type or print)		31a. NAME OF CONTRACTING OFFICER (Type or print)	
30b. SIGNATURE	30c. DATE	31b. UNITED STATES OF AMERICA BY	31c. DATE

Section 00 00 00 - Procurement and Contracting Requirements

Chickamauga Lock AWD Base & Options

Section 00 01 15 - List of Drawing Sheets

Number	Attachment Name	Attachment Description	Reference Identifier	Date	Line Item	# Of Pages
01	Instructions to Offerors and Procedures for Submission of Offerors and Proposal Evaluation Approach	Instructions to Offerors and Procedures for Submission of Offerors and Proposal Evaluation Approach		03 Feb 2025		30
02	DBA WD TN20250145 03Jan2025 (Hamilton County, TN Heavy Construction)	Wage Determination		03 Jan 2025		5
03	CKL Approach Wall and Decommissioning	Price Breakout Schedule		30 Jan 2025		4

A BASE: Division 01 GENERAL REQUIREMENTS**B** BASE: Division 02 EXISTING CONDITIONS**C** BASE: Division 03 CONCRETE**D** BASE: Division 05 METALS**E** BASE: Division 09 FINISHES**F** BASE: Division 10 SPECIALTIES**G** BASE: Division 13 SPECIAL CONSTRUCTION**H** BASE: Division 26 ELECTRICAL**J** BASE: Division 28 ELECTRONIC SAFETY AND SECURITY**K** BASE: Division 31 EARTHWORK**L** BASE: DIVISION 32 EXTERIOR IMPROVEMENTS**M** BASE: Division 33 UTILITIES**N** BASE: Division 35 WATERWAY AND MARINE CONSTRUCTION**P** OPTION 1: Division 01 GENERAL REQUIREMENTS**Q** OPTION 1: Division 02 EXISTING CONDITIONS**R** OPTION 1: Division 03 CONCRETE**S** OPTION 1: Division 05 METALS**T** OPTION 1: Division 10 SPECIALTIES**U** OPTION 1: Division 13 SPECIAL CONSTRUCTION**V** OPTION 1: Division 26 ELECTRICAL**W** OPTION 1: Division 28 ELECTRONIC SAFETY AND SECURITY**X** OPTION 1: Division 31 EARTHWORK**Y** OPTION 1: Division 35 WATERWAY AND MARINE CONSTRUCTION**Z** OPTION 2: Division 01 GENERAL REQUIREMENTS**AA** OPTION 2: DIVISION 02 EXISTING CONDITIONS**AB** OPTION 2: DIVISION 03 CONCRETE**AC** OPTION 2: DIVISION 09 FINISHES**AD** OPTION 2: DIVISION 10 SPECIALTIES**AE** OPTION 2: DIVISION 13 SPECIAL CONSTRUCTION**AF** OPTION 2: DIVISION 31 EARTHWORK

AG OPTION 3: DIVISION 01 GENERAL REQUIREMENTS

AH OPTION 3: DIVISION 02 EXISTING CONDITIONS

AJ OPTION 3: DIVISION 03 CONCRETE

AK OPTION 3: DIVISION 05 METALS

AL OPTION 3: DIVISION 07 THERMAL AND MOISTURE PROTECTION

AM OPTION 3: DIVISION 09 FINISHES

AN OPTION 3: DIVISION 10 SPECIALTIES

AP OPTION 3: DIVISION 13 SPECIAL CONSTRUCTION

AQ OPTION 3: DIVISION 23 HEATING, VENTILATION, and AIR CONDITIONING (HVAC)

AR OPTION 3: DIVISION 26 ELECTRICAL

AS OPTION 3: DIVISION 27 COMMUNICATIONS

AT OPTION 3: DIVISION 28 ELECTRONIC SAFETY and SECURITY

AU OPTION 3: DIVISION 31 EARTHWORK

AV OPTION 3: DIVISION 32 EXTERIOR IMPROVEMENT

AW OPTION 3: DIVISION 33 UTILITIES

AX OPTION 3: DIVISION 34 TRANSPORTATION

AY OPTION 3: DIVISION 35 WATERWAY AND MARINE CONSTRUCTION

AZ OPTION 3: DIVISION 46 WATER AND WASTEWATER EQUIPMENT

Section 00 10 00 - Solicitation, Contract Line Item Number (CLIN) Schedule

Additional Information/Notes

DELIVERY INFORMATION

SHIP TO ADDRESS: Chickamauga Lock Resident Office

RYAN CLEARY

5518 TRAILHEAD DRIVE

CHATTANOOGA TN 37415

FOB: Destination

PRICE SCHEDULE

An electronic Price Schedule is provided as a separate document titled CKL Approach Wall and Decomissioning.xlsx and may be submitted with the Offeror's price proposal.

Include price totals in the table below.

Base Total	\$ _____
Option 1 Total	\$ _____
Option 2 Total	\$ _____
Option 3 Total	\$ _____
Total Amount (Base + All Options)	\$ _____

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	See Exhibits A BASE: Division 01 GENERAL REQUIREMENTS				

A001	Formal Partnering Meeting General Specification Number: 01 00 00 Pricing Arrangement: Firm Fixed Price	1	Job		
A002	Mobilization and Demobilization General Specification Number: 01 22 00 Pricing Arrangement: Firm Fixed Price	1	Job		
A003	Premiums for Performance and Payment Bonds General Specification Number: 01 22 00 Pricing Arrangement: Firm Fixed Price	1	Job		
A004	Railroad Flagman General Specification Number: 01 22 00 Pricing Arrangement: Firm Fixed Price	6	Days		
A005	Data Management General Specification Number: 01 31 00 Pricing Arrangement: Firm Fixed Price	1	Job		
A006	Maintenance and Protection of Traffic. General Specification Number: 01 50 00 Pricing Arrangement: Firm Fixed Price	1	Job		
A007	Maintain QA Lab Testing and QA Field Office General Specification Number: 01 50 00 Pricing Arrangement: Firm Fixed Price	36	Months		
A008	Diversion and Care of Water General Specification Number: 01 57 24 Pricing Arrangement: Firm Fixed Price	1	Job		
A009	As-Built Drawings General Specification Number: 01 78 00 Pricing Arrangement: Firm Fixed Price	1	Job		
A010	Commissioning General Specification Number: 01 91 13 Pricing Arrangement: Firm Fixed Price	1	Job		
A011	Commissioning - Performance Verification Testing	1	Job		

	General Specification Number: 01 91 13 Pricing Arrangement: Firm Fixed Price				
A012	Commissioning - Post Construction Endurance Testing General Specification Number: 01 91 13 Pricing Arrangement: Firm Fixed Price	1	Job		
0002	See Exhibits B BASE: Division 02 EXISTING CONDITIONS				
B001	Overburden Drilling General Specification Number: 02 32 00 Pricing Arrangement: Firm Fixed Price	200	Linear Foot		
B002	Overburden Drilling - OVER 200 LF General Specification Number: 02 32 00 Pricing Arrangement: Firm Fixed Price	100	Linear Foot		
B003	Overburden - Split Spoon Sampling General Specification Number: 02 32 00 Pricing Arrangement: Firm Fixed Price	135	Each		
B004	Verification Core Drilling, Vertical Holes HQ General Specification Number: 02 32 00 Pricing Arrangement: Firm Fixed Price	72	Linear Foot		
B005	Core Drilling, Vertical Holes General Specification Number: 02 32 00 Pricing Arrangement: Firm Fixed Price	125	Linear Foot		
B006	Lab Testing - Direct Shear General Specification Number: 02 32 00 Pricing Arrangement: Firm Fixed Price	20	Each		
B007	Downhole Imaging General Specification Number: 02 32 00 Pricing Arrangement: Firm Fixed Price	290	Linear Foot		
B008	Downhole Imaging - OVER 290 LF General Specification Number: 02 32 00 Pricing Arrangement: Firm Fixed Price	100	Linear Foot		
	Segmental Cofferdam Modifications -				

B009	Standard Light and Fixture Removal, and Instrumentation General Specification Number: 02 41 13 and 02 41 17 Pricing Arrangement: Firm Fixed Price	1	Job		
B010	Demolition of Spillway Deck and Piers General Specification Number: 02 41 17 Pricing Arrangement: Firm Fixed Price	1	Job		
B011	Demolition and Disposal of Spillway Gate Set General Specification Number: 02 41 17 Pricing Arrangement: Firm Fixed Price	1	Each		
B012	Removal of Spillway Gate Sets (4) and Disposal of Gate Sets (2) to Include Salvaging Components General Specification Number: 02 41 17 Pricing Arrangement: Firm Fixed Price	4	Each		
B013	Cofferdam Removal - Phase 1 (Drawing 61W510-11) General Specification Number: 02 41 18 Pricing Arrangement: Firm Fixed Price	1	Job		
B014	Downstream Cofferdam Stability Berm Removal and Downstream approach material removal General Specification Number: 02 41 18 Pricing Arrangement: Firm Fixed Price	1	Job		
B015	Watertightness Testing of Rock Prior to Excavation for Thrust Block General Specification Number: 02 32 00 Pricing Arrangement: Firm Fixed Price	1	Job		
0003	See Exhibits C BASE: Division 03 CONCRETE				
C001	Waterstop General Specification Number: 03 15 14 Pricing Arrangement: Firm Fixed Price	1	Job		
C002	Reinforcing Steel - Material General Specification Number: 03 20 02 Pricing Arrangement: Firm Fixed Price	100	Net Ton (2,000 LB).		

C003	Place Rebar General Specification Number: 03 20 02 Pricing Arrangement: Firm Fixed Price	100	Net Ton (2,000 LB).		
C004	Drill and Grout #11 Dowels; Monolith M1 Second Placement General Specification Number: 03 20 02 Pricing Arrangement: Firm Fixed Price	25	Each		
C005	Cement, Type II, MH - Low Alkali and Moderate Heat General Specification Number: 03 30 01 Pricing Arrangement: Firm Fixed Price	1,200	Net Ton (2,000 LB).		
C006	Class F Fly Ash General Specification Number: 03 30 01 Pricing Arrangement: Firm Fixed Price	900	Net Ton (2,000 LB).		
C007	Tremie Concrete (5ksi) General Specification Number: 03 31 07 Pricing Arrangement: Firm Fixed Price	2,000	Cubic Yard		
C008	Downstream Government Directed Additional Tremie Concrete General Specification Number: 03 31 07 Pricing Arrangement: Firm Fixed Price	35	Cubic Yard		
C009	Downstream Install Precast Beams and Appurtenances - Riverside Wall General Specification Number: 03 41 34 Pricing Arrangement: Firm Fixed Price	1	Job		
C010	Upstream Install Precast Beams and Appurtenances General Specification Number: 03 41 34 Pricing Arrangement: Firm Fixed Price	1	Job		
C011	Upstream Skirt Panels and Appurtenances General Specification Number: 34 41 34 Pricing Arrangement: Firm Fixed Price	1	Each		
C012	Structural Concrete (5ksi) General Specification Number: 03 70 00 Pricing Arrangement: Firm Fixed Price	2,000	Cubic Yard		
C013	Pier Concrete (5ksi) General Specification Number: 03 80 00 Pricing Arrangement: Firm Fixed Price	2,395	Cubic Yard		

C014	Precast Beams Non-Destructive Testing (Riverside and Landside Walls) General Specification Number: 03 41 34 Pricing Arrangement: Firm Fixed Price	1	Job		
C015	Precast Beams Crack Repair - Riverside Wall General Specification Number: 03 41 34 Pricing Arrangement: Firm Fixed Price	1,600	Linear Foot		
C016	Precast Beams Defect Repair - Riverside Wall General Specification Number: 03 41 34 Pricing Arrangement: Firm Fixed Price	1,600	Square Foot		
C017	Precast Beams Surface Coating - Riverside Wall General Specification Number: 03 41 34 Pricing Arrangement: Firm Fixed Price	36,000	Square Foot		
C018	Block 45 Stairs - Construct Landing and Install Precast Stairs General Specification Number: 03 70 00 Pricing Arrangement: Firm Fixed Price	1	Job		
0004	See Exhibits D BASE: Division 05 METALS				
D001	Spillway Operating Deck Access Stairway General Specification Number: 05 51 00 Pricing Arrangement: Firm Fixed Price	1	Job		
D002	Crane Stops General Specification Number: 05 50 14 Pricing Arrangement: Firm Fixed Price	1	Job		
D003	Nose Pier and Intermediate Pier Metals - Riverside Wall General Specification Number: 05 59 20 Pricing Arrangement: Firm Fixed Price	1	Job		
D004	Steel Setting Piles - Riverside Wall General Specification Number: 05 50 14 Pricing Arrangement: Firm Fixed Price	385	Linear Foot		
	Miscellaneous Metal				

D005	General Specification Number: 05 50 15 Pricing Arrangement: Firm Fixed Price	1	Job		
D006	Wall Armor General Specification Number: 05 50 15 Pricing Arrangement: Firm Fixed Price	1	Job		
D007	Prefabricated Guiderail Installation General Specification Number: 05 50 15 Pricing Arrangement: Firm Fixed Price	450	Linear Foot		
0005	See Exhibit E BASE: Division 09 FINISHES				
E001	Painting - Upstream Approach Wall Nose Pier Stripes General Specification Number: 09 97 00 Pricing Arrangement: Firm Fixed Price	1	Job		
0006	See Exhibits F BASE: Division 10 SPECIALTIES				
F001	Permanent Exterior Signage General Specification Number: 10 14 03 and 10 14 04 Pricing Arrangement: Firm Fixed Price	1	Job		
F002	Fire Sprinkler System General Specification Number: 10 44 17 Pricing Arrangement: Firm Fixed Price	1	Job		
F003	Plumbing System General Specification Number: 10 44 17 Pricing Arrangement: Firm Fixed Price	1	Job		
F004	Operations Building Commissioning General Specification Number: 10 44 17 Pricing Arrangement: Firm Fixed Price	1	Job		
F005	Temporary Pump for Fire Protection System Pricing Arrangement: Firm Fixed Price	1	Job		

0007	See Exhibits G BASE: Division 13 SPECIAL CONSTRUCTION				
G001	Instrumentation Installation and Commissioning General Specification Number: 13 50 00 Pricing Arrangement: Firm Fixed Price	1	Job		
G002	Instrumentation Monitoring Program General Specification Number: 13 50 00 Pricing Arrangement: Firm Fixed Price	36	Months		
0008	See Exhibits H BASE: Division 26 ELECTRICAL				
H001	Replacement Lock Upstream Approach Wall Electrical Systems General Specification Number: 26 20 00 Pricing Arrangement: Firm Fixed Price	1	Job		
H002	Replacement Lock Downstream Approach Wall Electrical Systems - Riverside Wall General Specification Number: 26 20 00 Pricing Arrangement: Firm Fixed Price	1	Job		
H003	Post-Spillway Demolition Grounding System Connection General Specification Number: 26 20 00 Pricing Arrangement: Firm Fixed Price	1	Job		
H004	Post-Spillway Demolition Electrical Systems Repair General Specification Number: 26 20 00 Pricing Arrangement: Firm Fixed Price	1	Job		
H005	Replacement Lock Exterior Lighting General Specification Number: 26 56 00 Pricing Arrangement: Firm Fixed Price	1	Job		
H006	Power System Study General Specification Number: 26 05 73 Pricing Arrangement: Firm Fixed Price	1	Job		
0009	See Exhibit J BASE: Division 28 ELECTRONIC SAFETY				

	AND SECURITY				
J001	Security CCTV System General Specification Number: 28 23 23 Pricing Arrangement: Firm Fixed Price	1	Job		
0010	See Exhibits K BASE: Division 31 EARTHWORK				
K001	Install Downstream Approach Wall Intermediate Piers - Riverside Wall General Specification Number: 31 32 23 Pricing Arrangement: Firm Fixed Price	2	Each		
K002	Install Downstream Approach Wall Nose Piers - Riverside Wall General Specification Number: 31 32 23 Pricing Arrangement: Firm Fixed Price	1	Each		
K003	48" Downstream Approach Wall Guide Pipe Pile Rock Sockets - Riverside Wall General Specification Number: 31 63 28 Pricing Arrangement: Firm Fixed Price	145	Linear Foot		
K004	Furnish and Install Post Tensioned Anchors General Specification Number: 31 68 15 Pricing Arrangement: Firm Fixed Price	3,040	Linear Foot		
K005	Additional Performance Tests General Specification Number: 31 68 15 Pricing Arrangement: Firm Fixed Price	3	Each		
K006	Additional Proof Tests General Specification Number: 31 68 15 Pricing Arrangement: Firm Fixed Price	3	Each		
K007	Additional Watertightness Testing General Specification Number: 31 68 15 Pricing Arrangement: Firm Fixed Price	16	Each		
K008	Consolidation Grouting General Specification Number: 31 68 15 Pricing Arrangement: Firm Fixed Price	2,337	Cubic Feet		

K009	Redrilling Consolidation Grout General Specification Number: 31 68 15 Pricing Arrangement: Firm Fixed Price	1,952	Linear Foot		
K010	Government Requested Standby - Consolidation Grouting General Specification Number: 31 68 15 Pricing Arrangement: Firm Fixed Price	32	Hours		
K011	Supplementary Extended Creep Tests General Specification Number: 31 68 15 Pricing Arrangement: Firm Fixed Price	4	Each		
K012	Earth Retention System for Thrust Block - Design General Specification Number: 31 23 05 Pricing Arrangement: Firm Fixed Price	1	Job		
0011	See Exhibit L BASE: DIVISION 32 EXTERIOR IMPROVEMENTS				
L001	Flagpole Construction General Specification Number: Various Pricing Arrangement: Firm Fixed Price	1	Job		
0012	See Exhibits M BASE: Division 33 UTILITIES				
M001	Medium Voltage Distribution - Bay 5 to Lock General Specification Number: 33 71 02 Pricing Arrangement: Firm Fixed Price	1	Job		
M002	2-inch Temporary Domestic Water Line for Operations Building (routed across channel) General Specification Number: 33 11 00 Pricing Arrangement: Firm Fixed Price	1	Job		
M003	8-inch Temporary Fire Protection Line for Operations Building (routed across channel) General Specification Number: 33 11 00 Pricing Arrangement: Firm Fixed Price	1	Job		
	Temporary Sanitary Sewer Facility for Operations Building (Contractor				

M004	determined/provided) General Specification Number: 33 11 00 Pricing Arrangement: Firm Fixed Price	1	Job		
M005	Temporary FDC Connection for Ops Building General Specification Number: 33 11 00 Pricing Arrangement: Firm Fixed Price	1	Each		
M006	Fire Hydrant Assembly General Specification Number: 33 11 00 Pricing Arrangement: Firm Fixed Price	1	Each		
0013	See Exhibits N BASE: Division 35 WATERWAY AND MARINE CONSTRUCTION				
N001	Tow Haulage Systems - Procurement of all Tow Haulage Components General Specification Number: 35 01 41 Pricing Arrangement: Firm Fixed Price	1	Job		
N002	Tow Haulage Installation and Acceptance Tests - Upstream General Specification Number: 35 01 41 Pricing Arrangement: Firm Fixed Price	1	Job		
N003	Lock Machinery General Specification Number: 35 08 40 Pricing Arrangement: Firm Fixed Price	1	Job		
N004	Floating Mooring Bitts General Specification Number: 35 08 40 Pricing Arrangement: Firm Fixed Price	1	Job		
N005	Compressed Air System General Specification Number: 35 08 40 Pricing Arrangement: Firm Fixed Price	1	Job		
N006	Miter Gate Spray System General Specification Number: 35 08 40 Pricing Arrangement: Firm Fixed Price	1	Job		
N007	Service Water System General Specification Number: 35 08 40 Pricing Arrangement: Firm Fixed Price	1	Job		

N008	Lock Gallery Sump Pump System General Specification Number: 35 08 40 Pricing Arrangement: Firm Fixed Price	1	Job		
N009	Downstream Pier Excavation General Specification Number: 35 20 24 Pricing Arrangement: Firm Fixed Price	450	Cubic Yard		
Option Line Item 0014	See Exhibits P OPTION 1: Division 01 GENERAL REQUIREMENTS				
Option Line Item P001	Formal Partnering Meeting General Specification Number: 01 00 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item P002	Mobilization and Demobilization General Specification Number: 01 22 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item P003	Premiums for Performance and Payment Bonds General Specification Number: 01 22 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item P004	Railroad Flagman General Specification Number: 01 22 00 Pricing Arrangement: Firm Fixed Price	6	Days		
Option Line Item P005	Data Management General Specification Number: 01 31 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item P006	Maintenance and Protection of Traffic General Specification Number: 01 50 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item P007	Maintain QA Testing Lab and QA Field Office	18	Months		

	General Specification Number: 01 50 00 Pricing Arrangement: Firm Fixed Price				
Option Line Item P008	As-Built Drawings General Specification Number: 01 78 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item P009	Commissioning General Specification Number: 01 91 13 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item P010	Helper Boat General Specification Number: 01 00 00 Pricing Arrangement: Firm Fixed Price	24	Months		
Option Line Item 0015	See Exhibits Q OPTION 1: Division 02 EXISTING CONDITIONS				
Option Line Item Q001	Verification Core Drilling, Vertical Holes HQ General Specification Number: 02 32 00 Pricing Arrangement: Firm Fixed Price	168	Linear Foot		
Option Line Item Q002	Lab Testing - Direct Shear General Specification Number: 02 32 00 Pricing Arrangement: Firm Fixed Price	20	Each		
Option Line Item Q003	Protection Cell Removal General Specification Number: 02 41 18 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 0016	See Exhibits R OPTION 1: Division 03 CONCRETE				
Option Line Item R001	Reinforcing Steel - Material General Specification Number: 03 20 02 Pricing Arrangement: Firm Fixed Price	115	Net Ton (2,000 LB).		

Option Line Item R002	Place Rebar General Specification Number: 03 20 02 Pricing Arrangement: Firm Fixed Price	115	Net Ton (2,000 LB).		
Option Line Item R003	Cement, Type II, MH - Low Alkali and Moderate Heat General Specification Number: 03 30 01 Pricing Arrangement: Firm Fixed Price	1,500	Net Ton (2,000 LB).		
Option Line Item R004	Class F Fly Ash General Specification Number: 03 30 01 Pricing Arrangement: Firm Fixed Price	1,250	Net Ton (2,000 LB).		
Option Line Item R005	Downstream Government Directed Additional Tremie Concrete General Specification Number: 03 31 07 Pricing Arrangement: Firm Fixed Price	65	Cubic Yard		
Option Line Item R006	Downstream Install Precast Beams and Appurtenances - Landside Wall General Specification Number: 03 41 34 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item R007	Tremie Concrete (5ksi) General Specification Number: 03 31 07 Pricing Arrangement: Firm Fixed Price	4,000	Cubic Yard		
Option Line Item R008	Pier Concrete (5.5ksi) General Specification Number: 03 80 00 Pricing Arrangement: Firm Fixed Price	4,100	Cubic Yard		
Option Line Item R009	Precast Beams Crack repair - Landside Wall General Specification Number: 03 41 34 Pricing Arrangement: Firm Fixed Price	2,400	Linear Foot		
Option Line Item R010	Precast Beams Defect Repair - Landside Wall General Specification Number: 03 41 34 Pricing Arrangement: Firm Fixed Price	2,400	Square Foot		
	Precast Beams Surface Coating -				

Option Line Item R011	Landside Wall General Specification Number: 03 41 34 Pricing Arrangement: Firm Fixed Price	54,000	Square Foot		
Option Line Item 0017	See Exhibits S OPTION 1: Division 05 METALS				
Option Line Item S001	Nose Pier and Intermediate Pier Metals - Landside Wall General Specification Number: 05 59 20 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item S002	Steel Setting Piles - Landside Wall General Specification Number: 05 50 14 Pricing Arrangement: Firm Fixed Price	815	Linear Foot		
Option Line Item S003	Miscellaneous Metals General Specification Number: 05 50 15 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item S004	Wall Armor General Specification Number: 05 50 15 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 0018	See Exhibit T OPTION 1: Division 10 SPECIALTIES				
Option Line Item T001	Permanent Exterior Signage General Specification Number: 10 14 03 and 10 14 04 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 0019	See Exhibits U OPTION 1: Division 13 SPECIAL CONSTRUCTION				
Option Line Item U001	Instrumentation Monitoring Program	18	Months		

	General Specification Number: 13 50 00 Pricing Arrangement: Firm Fixed Price				
Option Line Item U002	Instrumentation Installation General Specification Number: 13 50 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 0020	See Exhibits V OPTION 1: Division 26 ELECTRICAL				
Option Line Item V001	Replacement Lock Downstream Approach Wall Electrical Systems - Landside Wall General Specification Number: 26 20 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item V002	Replacement Lock Exterior Lighting General Specification Number: 26 56 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 0021	See Exhibit W OPTION 1: Division 28 ELECTRONIC SAFETY AND SECURITY				
Option Line Item W001	Lock Operations CCTV System General Specification Number: 28 23 23 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 0022	See Exhibits X OPTION 1: Division 31 EARTHWORK				
Option Line Item X001	Install Downstream Approach Wall Intermediate Piers - Landside Wall General Specification Number: 31 32 23 Pricing Arrangement: Firm Fixed Price	6	Each		
Option Line Item X002	Install Downstream Approach Wall Nose Piers - Landside Wall General Specification Number: 31 32 23 Pricing Arrangement: Firm Fixed Price	1	Each		

Option Line Item X003	48" Downstream Approach Wall Pier Guide Pipe Pile Rock Sockets - Landside Wall General Specification Number: 31 63 28 Pricing Arrangement: Firm Fixed Price	305	Linear Foot		
Option Line Item 0023	See Exhibits Y OPTION 1: Division 35 WATERWAY AND MARINE CONSTRUCTION				
Option Line Item Y001	Tow Haulage Installation and Acceptance Tests - Downstream General Specification Number: 35 01 41 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item Y002	Service Water System - Downstream Approach Wall General Specification Number: 35 08 40 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item Y003	Downstream Pier Excavation General Specification Number: 35 20 24 Pricing Arrangement: Firm Fixed Price	915	Cubic Yard		
Option Line Item 0024	See Exhibits Z OPTION 2: Division 01 GENERAL REQUIREMENTS				
Option Line Item Z001	Mobilization and Demobilization General Specification Number: 01 22 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item Z002	Premiums for Performance and Payment Bonds General Specification Number: 01 22 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item Z003	Data Management General Specification Number: 01 31 00 Pricing Arrangement: Firm Fixed Price	1	Job		
	Maintenance and Protection of				

Option Line Item Z004	Traffic General Specification Number: 01 50 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item Z005	Maintain QA Testing Lab and QA Field Office General Specification Number: 01 50 00 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item Z006	As-Built Drawings General Specification Number: 01 78 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 0025	See Exhibits AA OPTION 2: DIVISION 02 EXISTING CONDITIONS				
Option Line Item AA01	Demolition of Mooring Cells General Specification Number: 02 41 17 Pricing Arrangement: Firm Fixed Price	4	Each		
Option Line Item AA02	Cofferdam Removal - Phase 2 (Drawing 61W510-11) General Specification Number: 02 41 18 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 0026	See Exhibits AB OPTION 2: DIVISION 03 CONCRETE				
Option Line Item AB01	Cement, Type II, MH - Low Alkali and Moderate Heat General Specification Number: 03 30 01 Pricing Arrangement: Firm Fixed Price	20	Net Ton (2,000 LB).		
Option Line Item AB02	Class F Fly Ash General Specification Number: 03 30 01 Pricing Arrangement: Firm Fixed Price	20	Net Ton (2,000 LB).		
Option Line Item AB03	Tremie Concrete (5ksi)	90	Cubic Yard		

	General Specification Number: 03 31 07 Pricing Arrangement: Firm Fixed Price				
Option Line Item 0027	See Exhibit AC OPTION 2: DIVISION 09 FINISHES				
Option Line Item AC01	Painting - Mooring Cells General Specification Number: 09 97 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 0028	See Exhibit AD OPTION 2: DIVISION 10 SPECIALTIES				
Option Line Item AD01	Permanent Exterior Signage General Specification Number: 10 14 03 and 10 14 04 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 0029	See Exhibit AE OPTION 2: DIVISION 13 SPECIAL CONSTRUCTION				
Option Line Item AE01	Instrumentation Monitoring Program General Specification Number: 13 50 00 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 0030	See Exhibits AF OPTION 2: DIVISION 31 EARTHWORK				
Option Line Item AF01	Mooring Cell Aggregate Fill General Specification Number: 31 00 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AF02	Metal Sheet Piling General Specification Number: 31 32 12 Pricing Arrangement: Firm Fixed Price	575	Linear Foot		

Option Line Item AF03	Metal Sheet Piling General Specification Number: 31 41 16 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AF04	Construction of Mooring Cells General Specification Number: 31 41 16 Pricing Arrangement: Firm Fixed Price	2	Each		
Option Line Item 0031	See Exhibits AG OPTION 3: DIVISION 01 GENERAL REQUIREMENTS				
Option Line Item AG01	Formal Partnering Meeting General Specification Number: 01 00 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AG02	Mobilization and Demobilization General Specification Number: 01 22 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AG03	Premiums for Performance and Payment Bonds General Specification Number: 01 22 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AG04	Data Management General Specification Number: 01 31 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AG05	Maintenance and Protection of Traffic General Specification Number: 01 50 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AG06	Maintain QA Testing Lab and QA Field Office General Specification Number: 01 50 00 Pricing Arrangement: Firm Fixed Price	18	Months		

Option Line Item AG07	Diversion and Care of Water General Specification Number: 01 57 24 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AG08	As-Built Drawings General Specification Number: 01 78 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AG09	Commissioning General Specification Number: 01 91 13 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 0032	See Exhibits AH OPTION 3: DIVISION 02 EXISTING CONDITIONS				
Option Line Item AH01	Verification of Core Drilling, Vertical Holes HQ General Specification Number: 02 32 00 Pricing Arrangement: Firm Fixed Price	455	Linear Foot		
Option Line Item AH02	Core Drilling, Vertical Holes General Specification Number: 02 32 00 Pricing Arrangement: Firm Fixed Price	120	Linear Foot		
Option Line Item AH03	Downhole Imaging General Specification Number: 02 32 00 Pricing Arrangement: Firm Fixed Price	650	Linear Foot		
Option Line Item AH04	Concrete Conduit Box Removal General Specification Number: 02 41 13 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AH05	Existing Pullbox Modifications General Specification Number: 02 41 13 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AH06	Contractor Access Ramp and Work Bench Restoration	1	Job		

	General Specification Number: 02 41 13 Pricing Arrangement: Firm Fixed Price				
Option Line Item AH07	Maintenance Shop Existing Access Demolition General Specification Number: 02 41 13 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AH08	Maintenance Shop Parking Lot Mulling for Resurfacing General Specification Number: 02 41 13 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AH09	Existing 24 inch CMP Demolition (61W525-03-AWD) General Specification Number: 02 41 13 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AH10	Toe Drain & Manhole Demolition (61W525-03-AWD) General Specification Number: 02 41 13 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AH11	Dam Toe Light Pole Removal (61W525-03-AWD) General Specification Number: 02 41 13 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AH12	Overhead Electrical Line Removal (61W525-04-AWD) General Specification Number: 02 41 13 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AH13	Eastern Lake Access Stripping General Specification Number: 02 41 13 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AH14	Trailhead Parking Lot Milling (61W525-06-AWD) General Specification Number: 02 41 13 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AH15	Contractor Parking Lots - Stripping as Required (61W525-07-AWD) General Specification Number: 02 41 13 Pricing Arrangement: Firm Fixed Price	1	Job		

Option Line Item AH16	Existing Maintenance Building Canopy Shed Demolition General Specification Number: 02 41 13 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AH17	Demolition of Existing Lock Machinery General Specification Number: 02 41 17 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AH18	Demolition of Existing Lock Operations Building General Specification Number: 02 41 17 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AH19	Demolition and Relocation of Existing Lock Upper Guidewall Beams and Piers above EL 660.0 General Specification Number: 02 41 17 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AH20	Place Rock Fill in Existing Lock Recesses General Specification Number: 02 41 17 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AH21	Salvage of Floating Mooring Bitts General Specification Number: 02 42 91 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AH22	Salvage of Culvert Valves General Specification Number: 02 42 91 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AH23	Remediation and Restoration of Electrical Service Rooms General Specification Number: Various Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AH24	Remediation and Restoration of Hazmat Room General Specification Number: Various Pricing Arrangement: Firm Fixed Price	1	Job		

Option Line Item AH25	Strip or Cover of Operations Building and Parking Lot Area General Specification Number: Various Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AH26	Catch Basin and Drain Removal (61W525-2-AWD) General Specification Number: 02 41 13 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AH27	Trailhead Drive Milling, Stripping, and Roadbed Preparation General Specification Number: 02 42 91 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AH28	Trailhead Rive Parking Lot Milling in Preparation for Resurfacing (61W525-04-AWD) General Specification Number: 02 42 91 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AH29	Trailer Removal X 2 and Foundation Demolition (61W525-04-AWD) General Specification Number: Various Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AH30	Trailer Relocation x 1 and Foundation Demolition (61W525-04-AWD) General Specification Number: Various Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AH31	Future Greenway Area Stripping General Specification Number: 32 92 19 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AH32	Stripping of Area West of Maintenance Shop General Specification Number: 32 92 19 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AH33	Resident Engineer Office Milling General Specification Number: 02 41 13 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AH34	Decommissioning and Demolition of Existing Lift Station	1	Job		

	General Specification Number: Drawings Pricing Arrangement: Firm Fixed Price				
Option Line Item 0033	See Exhibits AJ OPTION 3: DIVISION 03 CONCRETE				
Option Line Item AJ01	Waterstop General Specification Number: 03 15 14 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AJ02	2" LDPE Foam Expansion Joint General Specification Number: 03 15 14 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AJ03	Reinforcing Steel - Material General Specification Number: 03 20 02 Pricing Arrangement: Firm Fixed Price	835	Net Ton (2,000 LB).		
Option Line Item AJ04	Place Rebar General Specification Number: 03 20 02 Pricing Arrangement: Firm Fixed Price	835	Net Ton (2,000 LB).		
Option Line Item AJ05	Drill and Grout #6 Dowels; Waterstop Recess General Specification Number: 03 20 02 Pricing Arrangement: Firm Fixed Price	72	Each		
Option Line Item AJ06	Drill and Grout #8 Dowels; Existing Culverts and Cable Tunnel General Specification Number: 03 20 02 Pricing Arrangement: Firm Fixed Price	26	Each		
Option Line Item AJ07	Cement, Type II, MH - Low Alkali and Moderate Heat General Specification Number: 03 30 01 Pricing Arrangement: Firm Fixed Price	8,300	Net Ton (2,000 LB).		
Option Line Item AJ08	Class F Fly Ash General Specification Number: 03 30 01 Pricing Arrangement: Firm Fixed Price	5,600	Net Ton (2,000 LB).		

Option Line Item AJ09	Roughen/Preparation of Concrete Surface in Culverts and Cable Tunnel General Specification Number: 03 30 04 Pricing Arrangement: Firm Fixed Price	8,045	Square Foot		
Option Line Item AJ10	Culvert Valve and Cable Tunnel Plugs General Specification Number: 03 31 07 and 03 80 00 Pricing Arrangement: Firm Fixed Price	1,700	Cubic Yard		
Option Line Item AJ11	Inspection Shafts General Specification Number: 03 41 33 and 03 80 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AJ12	Contact Grout for Culverts and Cable Tunnel Plugs General Specification Number: 03 61 00 Pricing Arrangement: Firm Fixed Price	230	Cubic Yard		
Option Line Item AJ13	Structural Concrete (5ksi) General Specification Number: 03 70 00 Pricing Arrangement: Firm Fixed Price	42,000	Cubic Yard		
Option Line Item AJ14	10in. Paved Portland Cement Pavement (4ksi) with Dowels General Specification Number: 03 70 01 Pricing Arrangement: Firm Fixed Price	4,050	Square Yard		
Option Line Item AJ15	Culvert Valve Display Slab (4ksi) General Specification Number: 03 70 01 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AJ16	Operations Lot 30 x 50 ft Concrete Slab (4ksi) General Specification Number: 03 70 01 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AJ17	Miscellaneous Concrete (3ksi) General Specification Number: 03 70 01 Pricing Arrangement: Firm Fixed Price	1,100	Cubic Yard		

Option Line Item AJ18	Pier Concrete (5.5ksi) General Specification Number: 03 80 00 Pricing Arrangement: Firm Fixed Price	5	Cubic Yard		
Option Line Item AJ19	Concrete Slot Cutting General Specification Number: 03 81 19 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AJ20	Tremie Concrete (5ksi) General Specification Number: 03 31 07 Pricing Arrangement: Firm Fixed Price	450	Cubic Yard		
Option Line Item 0034	See Exhibits AK OPTION 3: DIVISION 05 METALS				
Option Line Item AK01	Miscellaneous Metals General Specification Number: 05 50 15 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AK02	Miscellaneous Metals General Specification Number: 05 50 15 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 0035	See Exhibit AL OPTION 3: DIVISION 07 THERMAL AND MOISTURE PROTECTION				
Option Line Item AL01	Operations Building - Waterproofing General Specification Number: 07 13 53 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 0036	See Exhibits AM OPTION 3: DIVISION 09 FINISHES				
Option Line Item AM01	Painting - Hazmat Room	1	Job		

	General Specification Number: 09 97 00 Pricing Arrangement: Firm Fixed Price				
Option Line Item AM02	Painting - Electrical Services Room General Specification Number: 09 97 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 0037	See Exhibits AN OPTION 3: DIVISION 10 SPECIALTIES				
Option Line Item AN01	Permanent Exterior Signage General Specification Number: 10 14 03 and 10 14 04 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AN02	Fire Sprinkler System General Specification Number: 10 44 17 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AN03	Plumbing System General Specification Number: 10 44 17 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AN04	Operations Building Commissioning General Specification Number: 10 44 17 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 0038	See Exhibits AP OPTION 3: DIVISION 13 SPECIAL CONSTRUCTION				
Option Line Item AP01	Instrumentation Monitoring Program General Specification Number: 13 50 00 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item AP02	Instrumentation Installation General Specification Number: 13 50 00 Pricing Arrangement: Firm Fixed Price	1	Job		

Option Line Item AP03	Instrumentation Maintenance and Modifications - Existing Lock General Specification Number: 13 50 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AP04	Cylinder Storage Building General Specification Number: 13 34 19.06 and others Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AP05	Crane Storage Shed Construction (61W525-24-AWD) General Specification Number: Various Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 0039	See Exhibits AQ OPTION 3: DIVISION 23 HEATING, VENTILATION, and AIR CONDITIONING (HVAC)				
Option Line Item AQ01	Testing, Adjusting, and Balancing (TAB) General Specification Number: 23 05 95 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AQ02	Heating and Ventilation Equipment - Cylinder Storage Building General Specification Number: Division 23, Section 08 91 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AQ03	Heating and Ventilation Equipment - Hazmat Room General Specification Number: Division 23, Section 08 91 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AQ04	Heating and Ventilation Equipment - Electrical Service Rooms General Specification Number: Division 23, Section 08 91 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 0040	See Exhibits AR OPTION 3: DIVISION 26 ELECTRICAL				
	HAZMAT Room Electrical				

Option Line Item AR01	Systems/Lighting General Specification Number: 26 20 00 / 26 51 00.06 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AR02	Site Exterior Lighting General Specification Number: 26 56 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AR03	Landside Electrical Room Systems/Lighting General Specification Number: 26 20 00 / 26 51 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AR04	Riverside Electrical Systems/Lighting General Specification Number: 26 20 00 / 26 51 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AR05	Existing Maintenance Building Interior Electrical Systems General Specification Number: 26 20 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AR06	Cylinder Storage Building Interior Electrical Systems/Lighting/Lightening Protection General Specification Number: 26 20 00/26 41 00/26 51 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AR07	Relocation of Miscellaneous Electrical Systems on Existing Lock General Specification Number: 26 20 00/33 71 02 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AR08	Repair of Existing Lock Grounding System Post Slot Cutting General Specification Number: 26 20 00 / 33 71 02 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 0041	See Exhibits AS OPTION 3: DIVISION 27 COMMUNICATIONS				

Option Line Item AS01	Fiber Optic Data Transmission System - Maintenance Building General Specification Number: 27 21 10 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AS02	Fiber Optic Data Transmission System - Cylinder Storage Building General Specification Number: 27 21 10 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AS03	Fiber Optic Data Transmission System - Site ESS General Specification Number: 27 21 10 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AS04	Telecom Cabling System - Maintenance Building General Specification Number: 27 21 10 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AS05	Telecom Cabling System - Cylinder Storage Building General Specification Number: 27 21 10 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 0042	See Exhibits AT OPTION 3: DIVISION 28 ELECTRONIC SAFETY and SECURITY				
Option Line Item AT01	ESS/Access Control - Site Perimeter and Buildings General Specification Number: 28 20 01 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AT02	Security CCTV System General Specification Number: 28 23 23 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AT03	Fire Detection System - HAZMAT Room General Specification Number: 28 31 00 / 28 31 64 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AT04	Fire Detection System - Maintenance Building	1	Job		

	General Specification Number: 28 31 00 / 28 31 64 Pricing Arrangement: Firm Fixed Price				
Option Line Item AT05	Fire Detection System - Cylinder Storage Building General Specification Number: 28 31 00 / 28 31 64 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 0043	See Exhibits AU OPTION 3: DIVISION 31 EARTHWORK				
Option Line Item AU01	Manage, and Place Material for New Maintenance Shop Ramp General Specification Number: 31 00 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AU02	Earthwork for Operations Parking Lot Area General Specification Number: 31 00 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AU03	Manage, and Place Material for Maintenance Shop lot and Thrust Block Access General Specification Number: 31 00 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AU04	Manage, and Place Material for New Operations Building Ramp General Specification Number: 31 00 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AU05	Maintenance Ramp Retaining Wall Construction (61W525-15-AWD) General Specification Number: 31 00 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AU06	Manage, and Place Downstream Lock Chamber Fill General Specification Number: 31 00 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AU07	Manage, and Place Upstream Lock Chamber Fill	1	Job		

	General Specification Number: 31 00 00 Pricing Arrangement: Firm Fixed Price				
Option Line Item AU08	Geotextile Installations General Specification Number: 31 05 22 Pricing Arrangement: Firm Fixed Price	13,000	Square Yard		
Option Line Item AU09	Rock Excavation General Specification Number: 31 23 05 Pricing Arrangement: Firm Fixed Price	6,034	Cubic Yard		
Option Line Item AU10	Dental Excavation (15% Surface Area) General Specification Number: 31 23 05 Pricing Arrangement: Firm Fixed Price	247	Cubic Yard		
Option Line Item AU11	Line Drilling (6" Spacing) General Specification Number: 31 23 05 Pricing Arrangement: Firm Fixed Price	844	Square Yard		
Option Line Item AU12	Thrust Block Overburden Excavation General Specification Number: 31 23 05 Pricing Arrangement: Firm Fixed Price	18,325	Cubic Yard		
Option Line Item AU13	Redrilling Grouted Holes General Specification Number: 31 32 12 Pricing Arrangement: Firm Fixed Price	575	Linear Foot		
Option Line Item AU14	Drill Grout Holes in Rock General Specification Number: 31 32 23 Pricing Arrangement: Firm Fixed Price	8,068	Linear Foot		
Option Line Item AU15	Pressure Washing (Hydraulic) General Specification Number: 31 32 23 Pricing Arrangement: Firm Fixed Price	72	Hours		
Option Line Item AU16	Pressure Testing (Hydraulic) General Specification Number: 31 32 23 Pricing Arrangement: Firm Fixed Price	884	Each		

Option Line Item AU17	Grout Mixes General Specification Number: 31 32 23 Pricing Arrangement: Firm Fixed Price	1,195	Cubic Yard		
Option Line Item AU18	Placing Grout General Specification Number: 31 32 23 Pricing Arrangement: Firm Fixed Price	1,195	Cubic Yard		
Option Line Item AU19	Government Requested Standby - Grouting General Specification Number: 31 32 23 Pricing Arrangement: Firm Fixed Price	24	Hours		
Option Line Item AU20	Dental Concrete General Specification Number: 31 60 00 Pricing Arrangement: Firm Fixed Price	247	Cubic Yard		
Option Line Item AU21	Foundation Preparation General Specification Number: 31 60 00 Pricing Arrangement: Firm Fixed Price	1,645	Square Yard		
Option Line Item AU22	Impervious Liner (Seepage Barrier) General Specification Number: 31 00 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AU23	Earth Retention System for Thrust Block - Construction General Specification Number: 31 23 05 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 0044	See Exhibits AV OPTION 3: DIVISION 32 EXTERIOR IMPROVEMENT				
Option Line Item AV01	Aggregate Base Course Grade D General Specification Number: 32 11 23 Pricing Arrangement: Firm Fixed Price	3,175	Net Ton (2,000 LB).		

Option Line Item AV02	TDOT Crushed Stone General Specification Number: 32 11 23 Pricing Arrangement: Firm Fixed Price	3,000	Net Ton (2,000 LB).		
Option Line Item AV03	TDOT #57 Stone General Specification Number: 32 11 23 Pricing Arrangement: Firm Fixed Price	1,350	Net Ton (2,000 LB).		
Option Line Item AV04	TDOT #2 Stone General Specification Number: 32 11 23 Pricing Arrangement: Firm Fixed Price	3,715	Net Ton (2,000 LB).		
Option Line Item AV05	Asphalt Pavement - Binder Course AC (PG64-22) GR "B-M2" General Specification Number: 32 12 16 Pricing Arrangement: Firm Fixed Price	3,550	Net Ton (2,000 LB).		
Option Line Item AV06	Asphalt Pavement - Wearing Course AC (PG64-22) GR "D" General Specification Number: 32 12 16 Pricing Arrangement: Firm Fixed Price	1,680	Net Ton (2,000 LB).		
Option Line Item AV07	Pavement Markings General Specification Number: 32 17 24 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AV08	Final Security Fencing General Specification Number: 32 31 13 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AV09	Main Access Gate Installation General Specification Number: 32 31 13 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item AV10	6-Foot Personnel Gate Installation General Specification Number: 32 31 13 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item AV11	12-Foot Personnel Gate Installation	1	Each		

	General Specification Number: 32 31 13 Pricing Arrangement: Firm Fixed Price				
Option Line Item AV12	Double Swing Gate Installation General Specification Number: 32 31 13 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item AV13	Barrier Swing Gate Installation General Specification Number: 32 31 13 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item AV14	Greenway (Contractor Laydown Area) Temporary, and Permanent Seeding General Specification Number: 32 92 19 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AV15	Designated Disposal Area Temporary and Permanent Seeding General Specification Number: 32 92 19 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AV16	Operations Parking Lot Area Temporary and Permanent Seeding General Specification Number: 32 92 19 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AV17	Contractor Parking Lot North of RE Office - Temporary and Permanent Seeding General Specification Number: 32 92 19 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AV18	Topsoil General Specification Number: 32 92 19 Pricing Arrangement: Firm Fixed Price	19,000	Net Ton (2,000 LB).		
Option Line Item AV19	Tree Plantings General Specification Number: 32 93 00 Pricing Arrangement: Firm Fixed Price	30	Each		
Option Line Item AV20	Shrub Plantings General Specification Number: 32 93 00 Pricing Arrangement: Firm Fixed Price	400	Each		

Option Line Item 0045	See Exhibits AW OPTION 3: DIVISION 33 UTILITIES				
Option Line Item AW01	2-inch Domestic Water Line for Operations Building General Specification Number: 33 11 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AW02	FDC Connection for Operations Building General Specification Number: 33 11 00 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item AW03	8-inch Fire Protection Line for Operations Building General Specification Number: 33 11 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AW04	6-inch Fire Protection Line for Operations Building General Specification Number: 33 11 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AW05	Fire Hydrant Assemblies General Specification Number: 33 11 00 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item AW06	8-inch Fire Protection Line for Maintenance Building General Specification Number: 33 11 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AW07	2-inch Force Main Sewer from Operations Building General Specification Number: 33 30 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AW08	Site Electrical Distribution - Maintenance Building General Specification Number: 33 71 02 Pricing Arrangement: Firm Fixed Price	1	Job		
	Site Electrical Distribution -				

Option Line Item AW09	Cylinder Storage Building General Specification Number: 33 71 02 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AW10	Site Electrical Distribution - Landside Electrical Room General Specification Number: 33 71 02 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AW11	Site Electrical Distribution - Site ESS/Perimeter General Specification Number: 33 71 02 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item AW12	30-inch Clas IV RCP General Specification Number: 33 11 00 Pricing Arrangement: Firm Fixed Price	70	Linear Foot		
Option Line Item AW13	24-inch Class IV RCP General Specification Number: 33 11 00 Pricing Arrangement: Firm Fixed Price	779	Linear Foot		
Option Line Item AW14	24-inch Class III RCP General Specification Number: 33 11 00 Pricing Arrangement: Firm Fixed Price	100	Linear Foot		
Option Line Item AW15	12-inch Smooth Wall HDPE (toe drain) General Specification Number: 33 11 00 Pricing Arrangement: Firm Fixed Price	560	Linear Foot		
Option Line Item AW16	Construction and Commissioning of New Lift Station General Specification Number: 33 30 00 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 0046	See Exhibits AX OPTION 3: DIVISION 34 TRANSPORTATION				
Option Line Item AX01	Curb Construction	325	Linear Foot		

	General Specification Number: 34 71 13 Pricing Arrangement: Firm Fixed Price				
Option Line Item AX02	Vehicular Guardrail Installaiton General Specification Number: 34 71 13 Pricing Arrangement: Firm Fixed Price	1,200	Linear Foot		
Option Line Item AX03	Parking Bumpers General Specification Number: 34 71 13 Pricing Arrangement: Firm Fixed Price	35	Each		
Option Line Item AX04	Bollards General Specification Number: 34 71 13 Pricing Arrangement: Firm Fixed Price	20	Each		
Option Line Item 0047	See Exhibits AY OPTION 3: DIVISION 35 WATERWAY AND MARINE CONSTRUCTION				
Option Line Item AY01	Furnish, Manage, and Place TDOT Class C Riprap General Specification Number: Various Pricing Arrangement: Firm Fixed Price	2,500	Net Ton (2,000 LB).		
Option Line Item AY02	Furnish, Manage, and Place TDOT Class B Riprap General Specification Number: Various Pricing Arrangement: Firm Fixed Price	1,600	Net Ton (2,000 LB).		
Option Line Item AY03	Furnish, Manage, and Place TDOT Class A Riprap General Specification Number: Various Pricing Arrangement: Firm Fixed Price	1,500	Net Ton (2,000 LB).		
Option Line Item AY04	Furnish, Manage, and Place Bedding for Riprap General Specification Number: Various Pricing Arrangement: Firm Fixed Price	1,675	Net Ton (2,000 LB).		
Option Line Item 0048	See Exhibit AZ OPTION 3: DIVISION 46 WATER AND WASTEWATER EQUIPMENT				

Option Line Item AZ01	Aerating Fountain Construction General Specification Number: 46 51 00.00 10 Pricing Arrangement: Firm Fixed Price	1	Job		
--------------------------	---	---	-----	--	--

Section 00 20 00 - Instructions for Procurements

FAR Clauses Incorporated by Full Text

52.236-27 Site Visit (Construction). (Alternate I)

(Feb 1995) Alternate I (Feb 1995)

Alternate I (Feb 1995). If an organized site visit will be conducted, substitute a paragraph substantially the same as the following for paragraph (b) of the basic provision:

(b) An organized site visit has been scheduled for-

20 February 2025 at 10:00AM Eastern Time.

(c) Participants will meet at-

Chickamauga Lock Resident Office, 5518 Trailhead Dr. Chattanooga, TN 37415

Recommend using GPS coordinates, Latitude:35.108234 Longitude: -85.230367

Parking will be in the parking lot adjacent to the traffic circle with overflow parking under the HWY 153 bridge.

An itinerary will be given out at the beginning of the site visit. After the site visit at Chickamauga Lock, the Government and registered attendees will then travel to Watts Bar, TN which is approximately a one (1) hour drive away to see the site of where the Government Furnished Property is stored. Due to Watts Bar not having a physical address, a PDF attachment is posted on SAM.gov with maps to Watts Bar. Map coordinates for Watts Bar are 35.613046, -84.781125. Only four (4) persons from each business entity will be permitted to attend the In-Person Site Visit. Attendees will be responsible for their own transportation to and from the various sites

POINT-OF-CONTACT: For questions and/or concerns regarding the site visit, please contact Contract Specialist, Andrew Roth at Andrew.R.Roth@usace.army.mil.

*Special Instructions - All participants are required to have personal protective equipment, i.e. hard hat, safety glasses, reflective vests, and steel-toed shoes before entering the project site. Contractors who do not have these items present at the site visit may not be able to participate in the visit.

An approved site visit request form will be needed for each individual attendee. This will be the only Site Visit for this project. If you miss the scheduled event, no other arrangements will be made due to personnel and time restrictions.

Section 00 21 00 - Instructions**Instructions to Offerors**

The Instructions to Offerors and Procedures for Submittal of Offers and Proposal Evaluation Approach are attached as a separate document and is considered a part of this solicitation/contract. This document has thirty (30) pages.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-7	System for Award Management.	Oct 2018		
52.204-22	Alternative Line Item Proposal.	Jan 2017		
52.222-5	Construction Wage Rate Requirements-Secondary Site of the Work.	May 2014		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		

FAR Clauses Incorporated by Full Text**52.233-2 Service of Protest. (Sep 2006)**

As prescribed in 33.106 , insert the following provision:

Service of Protest (Sept 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from:

U.S. Army Corps of Engineers (USACE)

Nashville Contracting Branch (CELRN-CT)

Stacy S. Wiggins, Contracting Officer

110 9th Avenue South, Room A405 (Mailroom)

Nashville, TN 37203

email: Stacy.S.Wiggins@usace.army.mil

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference. (Feb 1998)

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be

completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

FAR: <https://www.acquisition.gov/>

DFARS: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

(End of provision)

52.252-5 Authorized Deviations in Provisions.

(Nov 2020)

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Defense Federal Acquisition Regulation Supplement (48 CFR Chapter2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

Section 00 21 16 - Instructions to Proposers

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-16	Commercial and Government Entity Code Reporting.	Aug 2020		

Section 00 22 00 - Supplementary Instructions

FAR Clauses Incorporated by Full Text

52.252-3 Alterations in Solicitation.

(Apr 1984)

As prescribed in 52.107(c), insert the following provision in solicitations in order to revise or supplement, as necessary, other parts of the solicitation that apply to the solicitation phase only, except for any provision authorized for use with a deviation. Include clear identification of what is being-altered.

Alterations in Solicitation (Apr 1984)

Portions of this solicitation are altered as follows:

NONE ____

(End of clause)

Section 00 45 00 - Representations and Certifications**FAR Clauses Incorporated by Reference**

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-24	Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment.	Nov 2021		
52.209-7	Information Regarding Responsibility Matters.	Oct 2018		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	May 2021		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		

FAR Clauses Incorporated by Full Text**52.204-8 Annual Representations and Certifications. (Jan 2025)**

As prescribed in 4.1202(a), insert the following provision:

Annual Representations and Certifications (Jan 2025)

(a)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 237990.

(2) The small business size standard is \$45,000,000.00.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519 if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b)

(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

(i) Paragraph (d) applies.

(ii) Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c)

(1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless-

(A) The acquisition is to be made under the simplified acquisition procedures in part 13;

- (B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or
- (C) The solicitation is for utility services for which rates are set by law or regulation.
- (ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$150,000.
- (iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.
- (iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.
- (v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that-
 - (A) Are not set aside for small business concerns;
 - (B) Exceed the simplified acquisition threshold; and
 - (C) Are for contracts that will be performed in the United States or its outlying areas.
- (vi) 52.204-26, Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.
- (vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations-Representation.
- (viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.
- (ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.
- (x) 52.214-14, Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.
- (xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.
- (xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).
 - (A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.
 - (B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.
 - (C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.
- (xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).
- (xiv) 52.222-22, Previous Contracts and Compliance Reports. This provision applies to solicitations that include the clause at 52.222-26, Equal Opportunity.
- (xv) 52.222-25, Affirmative Action Compliance. This provision applies to solicitations, other than those for construction, when the solicitation includes the clause at 52.222-26, Equal Opportunity.
- (xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.
- (xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of biobased products in USDA-designated product categories; or include the clause at 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts.
- (xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA-designated items.
- (xix) 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals-Representation. This provision applies to solicitations that include the provision at 52.204-7.
- (xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.
- (xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.

- (A) If the acquisition value is less than \$50,000, the basic provision applies.
- (B) If the acquisition value is \$50,000 or more but is less than \$100,000, the provision with its Alternate II applies.
- (C) If the acquisition value is \$100,000 or more but is less than \$102,280, the provision with its Alternate III applies.
- (xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.
- (xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.
- (xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.
- (xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.
- (2) The following representations or certifications are applicable as indicated by the Contracting Officer:
- [X] (i) 52.204-17, Ownership or Control of Offeror.
- [X] (ii) 52.204-20, Predecessor of Offeror.
- (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.
- (iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment- Certification.
- (v) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.
- (vi) 52.227-6, Royalty Information.
- (A) Basic.
- (B) Alternate I.
- (vii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.
- (d) The offeror has completed the annual representations and certifications electronically in SAM website accessed through <https://www.sam.gov>. After reviewing the SAM information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [*offeror to insert changes, identifying change by clause number, title, date*]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause #	Title	Date	Change

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7007 Alternate A, Annual Representations and Certifications.

(Oct 2024) Alternate A (Oct 2024)

ALTERNATE A, ANNUAL REPRESENTATIONS AND CERTIFICATIONS (OCT 2024)

Substitute the following paragraphs (b), (d), and (e) for paragraphs (b) and (d) of the provision at FAR 52.204-8:

- (b)(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (e) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (e) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

(i) Paragraph (e) applies.

(ii) Paragraph (e) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(d)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment-Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services-Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$150,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)-Representation. Applies to solicitations and contracts when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)-Representation. Applies to solicitations and contracts when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer:

[X] (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

(ii) 252.225-7000, Buy American-Balance of Payments Program Certificate.

(iii) 252.225-7020, Trade Agreements Certificate.

Use with Alternate I.

[X] (iv)(iv) 252.225-7031, Secondary Arab Boycott of Israel.

(v) 252.225-7035, Buy American-Free Trade Agreements-Balance of Payments Program Certificate.

Use with Alternate I.

Use with Alternate II.

Use with Alternate III.

Use with Alternate IV.

Use with Alternate V.

(vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

(vii) 252.232-7015, Performance-Based Payments-Representation.

(e) The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov>. After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-8(c) and paragraph (d) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [Offeror to insert changes, identifying change by provision number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS Provision #	Title	Date	Change

==	==	==	==
----	----	----	----

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

Section 00 70 00 - Conditions of the Contract**INSPECTION AND ACCEPTANCE TERMS**

Supplies/services will be inspected/accepted at:

INSPECT AT	INSPECT BY	ACCEPT AT	ACCEPT BY
Destination	Government	Destination	Government

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-3	Gratuities.	Apr 1984		
52.203-5	Covenant Against Contingent Fees.	May 2014		
52.203-6	Restrictions on Subcontractor Sales to the Government.	Jun 2020		
52.203-7	Anti-Kickback Procedures.	Jun 2020		
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity.	May 2014		
52.203-10	Price or Fee Adjustment for Illegal or Improper Activity.	May 2014		
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020		
52.203-13	Contractor Code of Business Ethics and Conduct.	Nov 2021		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-9	Personal Identity Verification of Contractor Personnel.	Jan 2011		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards.	Jun 2020		
52.204-13	System for Award Management Maintenance.	Oct 2018		
52.204-18	Commercial and Government Entity Code Maintenance.	Aug 2020		
52.204-19	Incorporation by Reference of Representations and Certifications.	Dec 2014		
52.204-21	Basic Safeguarding of Covered Contractor Information Systems.	Nov 2021		
52.204-23	Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities.	Dec 2023		
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.	Nov 2021		
52.204-27	Prohibition on a ByteDance Covered Application.	Jun 2023		
52.204-29	Federal Acquisition Supply Chain Security Act Orders-Representation and Disclosures.	Dec 2023		
52.209-6	Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment.	Nov 2021		
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters.	Oct 2018		
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations.	Nov 2015		
52.209-13	Violation of Arms Control Treaties or Agreements-Certification.	Nov 2021		
52.210-1	Market Research.	Nov 2021		
52.211-15	Defense Priority and Allocation Requirements.	Apr 2008		
52.211-18	Variation in Estimated Quantity.	Apr 1984		
52.215-1	Instructions to Offerors-Competitive Acquisition. (Alternate I)	Nov 2021	Alternate I	Oct 1997
52.215-2	Audit and Records-Negotiation.	Jun 2020		
52.215-11	Price Reduction for Defective Certified Cost or Pricing Data -- Modifications (DEVIATION 2022-O0001)	Jun 2020	Deviation 2022-O0001	Oct 2021
52.215-13	Subcontractor Certified Cost or Pricing Data -- Modifications (Deviation 2022-O0001)	Jun 2020	Deviation 2022-O0001	Oct 2021
52.215-15	Pension Adjustments and Asset Reversions.	Oct 2010		
52.215-18	Reversion or Adjustment of Plans for Postretirement Benefits (PRB) Other Than Pensions.	Jul 2005		
52.215-19	Notification of Ownership Changes.	Oct 1997		
	Requirements for Certified Cost or Pricing Data and Data Other Than Certified			

52.215-21	Cost or Pricing Data-Modifications.	Nov 2021		
52.219-8	Utilization of Small Business Concerns.	Feb 2024		
52.219-9	Small Business Subcontracting Plan.	Sep 2023		
52.219-16	Liquidated Damages-Subcontracting Plan.	Sep 2021		
52.222-3	Convict Labor.	Jun 2003		
52.222-4	Contract Work Hours and Safety Standards -Overtime Compensation.	May 2018		
52.222-6	Construction Wage Rate Requirements.	Aug 2018		
52.222-7	Withholding of Funds.	May 2014		
52.222-8	Payrolls and Basic Records.	Jul 2021		
52.222-9	Apprentices and Trainees.	Jul 2005		
52.222-10	Compliance with Copeland Act Requirements.	Feb 1988		
52.222-11	Subcontracts (Labor Standards).	May 2014		
52.222-12	Contract Termination-Debarment.	May 2014		
52.222-13	Compliance with Construction Wage Rate Requirements and Related Regulations.	May 2014		
52.222-14	Disputes Concerning Labor Standards.	Feb 1988		
52.222-15	Certification of Eligibility.	May 2014		
52.222-21	Prohibition of Segregated Facilities.	Apr 2015		
52.222-26	Equal Opportunity.	Sep 2016		
52.222-27	Affirmative Action Compliance Requirements for Construction.	Apr 2015		
52.222-33	Notice of Requirement for Project Labor Agreement.	Jan 2024		
52.222-34	Project Labor Agreement.	Jan 2024		
52.222-35	Equal Opportunity for Veterans.	Jun 2020		
52.222-36	Equal Opportunity for Workers with Disabilities.	Jun 2020		
52.222-37	Employment Reports on Veterans.	Jun 2020		
52.222-50	Combating Trafficking in Persons.	Nov 2021		
52.222-54	Employment Eligibility Verification.	May 2022		
52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14026.	Jan 2022		
52.222-62	Paid Sick Leave Under Executive Order 13706.	Jan 2022		
52.223-2	Reporting of Biobased Products Under Service and Construction Contracts.	May 2024		
52.223-5	Pollution Prevention and Right-to-Know Information.	May 2024		
52.223-20	Aerosols.	May 2024		
52.223-21	Foams.	May 2024		
52.223-23	Sustainable Products and Services.	May 2024		
52.225-12	Notice of Buy American Requirement-Construction Materials Under Trade Agreements.	May 2014		
52.225-13	Restrictions on Certain Foreign Purchases.	Feb 2021		
52.226-7	Drug-Free Workplace.	May 2024		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.227-1	Authorization and Consent.	Jun 2020		
52.227-2	Notice and Assistance Regarding Patent and Copyright Infringement.	Jun 2020		
52.227-4	Patent Indemnity-Construction Contracts.	Dec 2007		
52.228-2	Additional Bond Security.	Oct 1997		
52.228-5	Insurance-Work on a Government Installation.	Jan 1997		
52.228-11	Pledges of Assets (DEVIATION 2020-O0016)	Feb 2021	Deviation 2020-O0016	Apr 2020
52.228-12	Prospective Subcontractor Requests for Bonds.	Dec 2022		
52.228-14	Irrevocable Letter of Credit.	Nov 2014		
52.228-17	Individual Surety-Pledge of Assets (Bid Guarantee).	Feb 2021		
52.229-3	Federal, State, and Local Taxes.	Feb 2013		
52.229-11	Tax on Certain Foreign Procurements-Notice and Representation.	Jun 2020		
52.232-17	Interest.	May 2014		
52.232-23	Assignment of Claims. (Alternate I)	May 2014	Alternate I	Apr 1984
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-1	Disputes.	May 2014		
52.233-3	Protest after Award.	Aug 1996		
52.233-4	Applicable Law for Breach of Contract Claim.	Oct 2004		
52.236-2	Differing Site Conditions.	Apr 1984		
52.236-3	Site Investigation and Conditions Affecting the Work.	Apr 1984		
52.236-5	Material and Workmanship.	Apr 1984		
52.236-6	Superintendence by the Contractor.	Apr 1984		
52.236-7	Permits and Responsibilities.	Nov 1991		
52.236-8	Other Contracts.	Apr 1984		
52.236-9	Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements.	Apr 1984		
52.236-10	Operations and Storage Areas.	Apr 1984		
52.236-11	Use and Possession Prior to Completion.	Apr 1984		
52.236-12	Cleaning Up.	Apr 1984		
52.236-13	Accident Prevention. (Alternate I)	Nov 1991	Alternate I	Nov 1991
52.236-15	Schedules for Construction Contracts.	Apr 1984		
52.236-16	Quantity Surveys.	Apr 1984		

52.236-17	Layout of Work.	Apr 1984		
52.236-21	Specifications and Drawings for Construction. (Alternate I)	Feb 1997	Alternate I	Apr 1984
52.236-28	Preparation of Proposals-Construction.	Oct 1997		
52.240-1	Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities.	Nov 2024		
52.242-5	Payments to Small Business Subcontractors.	Jan 2017		
52.242-13	Bankruptcy.	Jul 1995		
52.242-14	Suspension of Work.	Apr 1984		
52.243-4	Changes.	Jun 2007		
52.244-6	Subcontracts for Commercial Products and Commercial Services.	Feb 2024		
52.245-1	Government Property.	Sep 2021		
52.245-9	Use and Charges.	Apr 2012		
52.246-12	Inspection of Construction.	Aug 1996		
52.249-2	Termination for Convenience of the Government (Fixed-Price). (Alternate I)	Apr 2012	Alternate I	Sep 1996
52.249-10	Default (Fixed-Price Construction).	Apr 1984		
52.253-1	Computer Generated Forms.	Jan 1991		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7001	Prohibition on Persons Convicted of Fraud or Other Defense-Contract-Related Felonies.	Jan 2023		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.203-7003	Agency Office of the Inspector General.	Aug 2019		
252.203-7004	Display of Hotline Posters.	Jan 2023		
252.204-7002	Payment for Contract Line or Subline Items Not Separately Priced.	Apr 2020		
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)	May 2024	Deviation 2024-O0013	May 2024
252.204-7015	Notice of Authorized Disclosure of Information for Litigation Support.	Jan 2023		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.205-7000	Provision of Information to Cooperative Agreement Holders.	Oct 2024		
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019		
252.215-7013	Supplies and Services Provided by Nontraditional Defense Contractors.	Jan 2023		
252.215-7016	Notification to Offerors-Postaward Debriefings.	Dec 2022		
252.219-7003	Small Business Subcontracting Plan (DoD Contracts).	Dec 2019		
252.223-7006	Prohibition on Storage, Treatment, and Disposal of Toxic or Hazardous Materials.	Sep 2014		
252.223-7008	Prohibition of Hexavalent Chromium.	Jan 2023		
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.225-7052	Restriction on the Acquisition of Certain Magnets, Tantalum, and Tungsten.	May 2024		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7057	Preaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Aug 2022		
252.225-7058	Postaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Jan 2023		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.225-7966	Prohibition Regarding Russian Fossil Fuel Business Operations-Representation (Deviation 2024-O0006, Revision 1)	Mar 2024	Deviation 2024-O0006	Mar 2024
252.225-7967	Prohibition Regarding Russian Fossil Fuel Business Operations (Deviation 2024-O0006, Revision 1)	Feb 2024	Deviation 2024-O0006	Feb 2024
252.225-7972	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014	Aug 2024
252.225-7973	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems###Representation. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014	Aug 2024
252.226-7003	Drug-Free Work Force.	Aug 2024		
252.227-7025	Limitations on the Use or Disclosure of Government-Furnished Information Marked With Restrictive Legends	Jan 2023		
252.227-7033	Rights in Shop Drawings.	Apr 1966		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		

252.232-7010	Levies on Contract Payments.	Dec 2006
252.236-7000	Modification Proposals--Price Breakdown.	Dec 1991
252.236-7002	Obstruction of Navigable Waterways.	Dec 1991
252.236-7008	Contract Prices--Bidding Schedules.	Dec 1991
252.243-7001	Pricing of Contract Modifications.	Dec 1991
252.243-7002	Requests for Equitable Adjustment.	Dec 2022
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	Nov 2023
252.244-7001	Contractor Purchasing System Administration.	May 2014
252.245-7003	Contractor Property Management System Administration	Apr 2012
252.245-7005	Management and Reporting of Government Property.	Jan 2024
252.247-7023	Transportation of Supplies by Sea.	Oct 2024

FAR Clauses Incorporated by Full Text

52.211-10 Commencement, Prosecution, and Completion of Work.

(Apr 1984)

Commencement, Prosecution, and Completion of Work (Apr 1984)

The Contractor shall be required to (a) commence work under this contract within 120 calendar days after the date the Contractor receives the Administrative Notice to Proceed (NTP), (b) prosecute the work diligently, and (c) complete the entire work ready for use not later than 2,008 calendar days after the Administrative NTP is issued. The time stated for completion shall include final cleanup of the premises.

The contract completion timeframe of 2,008 consecutive calendar days begins with the issuance of the Administrative NTP. The NTP will be issued within the established conditions and timeframes stated in Section 01 00 00 of the Technical Specifications. No additional days will be added to the contract duration with the issuance of the NTP.

Period	Period of Performance (POP)
Base Year	1,095 calendar days from Admin NTP
Option 1	**Additional 730 calendar days
Option 2	**Additional 639 calendar days
Option 3	**Additional 913 calendar days

Total POP: ** 2,008 calendar days (5 years and 6 months)

** - The total POP shall not exceed 2,008 calendar days in any configuration with the exercising of contract options. In the instance Option 3 is exercised prior to Options 1 and 2 no additional days will be added to the POP if/when Options 1 and/or 2 are exercised.

- The intent is to exercise the options within three (3) years from issuance of the Administrative NTP.

(End of clause)

52.211-12 Liquidated Damages-Construction.

(Sep 2000)

Liquidated Damages-Construction (Sept 2000)

(a) If the Contractor fails to complete the work within the time specified in the contract, the Contractor shall pay liquidated damages to the Government in the amount of \$24,893.73 for each calendar day of delay until the work is completed or accepted.

(b) If the Government terminates the Contractor's right to proceed, liquidated damages will continue to accrue until the work is completed. These liquidated damages are in addition to excess costs of repurchase under the Termination clause.

(End of clause)

52.211-14 Notice of Priority Rating for National Defense, Emergency Preparedness, and Energy Program Use. (Apr 2008)

As prescribed in 11.604(a), insert the following provision:

Notice of Priority Rating for National Defense, Emergency Preparedness, and Energy Program Use (Apr 2008)

Any contract awarded as a result of this solicitation will be [] DX rated order; [X] DO rated order certified for national defense, emergency preparedness, and energy program use under the Defense Priorities and Allocations System (DPAS) (15 CFR700), and the Contractor will be required to follow all of the requirements of this regulation.

(End of provision)

52.216-1 Type of Contract. (Apr 1984)

Type of Contract (Apr 1984)

The Government contemplates award of a Firm Fixed-Price Construction contract resulting from this solicitation.

(End of provision)

52.217-5 Evaluation of Options. (Jul 1990)

As prescribed in 17.208(c), insert a provision substantially the same as the following:

Evaluation of Options (July 1990)

Except when it is determined in accordance with FAR 17.206(b) not to be in the Government's best interests, the Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options will not obligate the Government to exercise the option(s).

(End of provision)

52.217-7 Option for Increased Quantity-Separately Priced Line Item. (Mar 1989)

As prescribed in 17.208(e), insert a clause substantially the same as the following:

Option for Increased Quantity-Separately Priced Line Item (Mar 1989)

The Government may require the delivery of the numbered line item, identified in the Schedule as an option item, in the quantity and at the price stated in the Schedule. The Contracting Officer may exercise the option by written notice to the Contractor **within three (3) years from issuance of the Administrative Notice to Proceed**. Delivery of added items shall continue at the same rate that like items are called for under the contract, unless the parties otherwise agree.

(End of clause)

52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns. (Oct 2022)

As prescribed in 19.1309(b), insert the following clause:

Notice of Price Evaluation preference for HUBZone Small Business Concerns (Oct 2022)

(a) Evaluation preference.

(1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except-

(i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and

(ii) Otherwise successful offers from small business concerns.

(2) The factor of 10 percent shall be applied on a line item basis or to any group of items on which award may be made. Other evaluation factors described in the solicitation shall be applied before application of the factor.

(3) When the two highest rated offerors are a HUBZone small business concern and a large business, and the evaluated offer of the HUBZone small business concern is equal to the evaluated offer of the large business after considering the price evaluation preference, award will be made to the HUBZone small business concern.

(b) Waiver of evaluation preference. A HUBZone small business concern may elect to waive the evaluation preference, in which case the factor will be added to its offer for evaluation purposes.

[] Offeror elects to waive the evaluation preference.

(c) Joint venture. A HUBZone joint venture agrees that, in the performance of the contract, at least 40 percent of the aggregate work performed by the joint venture shall be completed by the HUBZone small business parties to the joint venture. Work performed by the HUBZone small business parties to the joint venture must be more than administrative functions.

(End of clause)

52.219-28 Post-Award Small Business Program Rerepresentation.

(Feb 2024)

As prescribed in 19.309(c)(1), insert the following clause:

Post-Award Small Business Program Rerepresentation (Feb 2024)

(a) *Definitions.* As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (d) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) If the Contractor represented that it was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, when the Contracting Officer explicitly requires it for an order issued under a multiple-award contract.

(d) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support-table-size-standards>.

(e) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

- (1) Was set aside for small business and has a value above the simplified acquisition threshold;
- (2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or
- (3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.
- (f) Except as provided in paragraph (h) of this clause, the Contractor shall make the representation(s) required by paragraph (b) and (c) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting office in writing within the timeframes specified in paragraph (b) of this clause, or with its offer for an order (see paragraph (c) of this clause), that the data have been validated or updated, and provide the date of the validation or update.
- (g) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (f) or (h) of this clause.
- (h) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:
- (1) The Contractor represents that it is, is not a small business concern under NAICS Code 237990 assigned to Solicitation W912P525RA0001.
- (2) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]* The Contractor represents that it is, is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.
- (3) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]* The Contractor represents that it is, is not a women-owned small business concern.
- (4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it is, is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]
- (5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it is, is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]
- (6) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]* The Contractor represents that it is, is not a veteran-owned small business concern.
- (7) *[Complete only if the Contractor represented itself as a veteran-owned small business concern in paragraph (h)(6) of this clause.]* The Contractor represents that it is, is not a service-disabled veteran-owned small business concern.
- (8) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program.* The Contractor represents that it is, is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]
- (9) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]* The Contractor represents that-
- (i) It is, is not a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or HUBZone employee percentage have occurred since it was certified in accordance with 13 CFR part 126; and
- (ii) It is, is not a HUBZone joint venture that complies with the requirements of 13 CFR part 126, and the representation in paragraph (h)(8)(i) of this clause is accurate for each HUBZone small business concern participating in the HUBZone joint venture. [The Contractor shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture: ____.] Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate signed copy of the HUBZone representation.

[____ Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

52.222-23 Notice of Requirement for Affirmative Action to Ensure Equal Employment Opportunity for Construction.

(Feb 1999)

As prescribed in 22.810(b), insert the following provision:

Notice of Requirement for Affirmative Action to Ensure Equal Employment Opportunity for Construction (Feb 1999)

(a) The offeror's attention is called to the Equal Opportunity clause and the Affirmative Action Compliance Requirements for Construction clause of this solicitation.

(b) The goals for minority and female participation, expressed in percentage terms for the Contractor's aggregate workforce in each trade on all construction work in the covered area, are as follows:

Goals for Minority Participation for Each Trade	Goals for Female Participation for Each Trade
<u>12.5%</u>	<u>6.9%</u>

These goals are applicable to all the Contractor's construction work performed in the covered area. If the Contractor performs construction work in a geographical area located outside of the covered area, the Contractor shall apply the goals established for the geographical area where the work is actually performed. Goals are published periodically in the *Federal Register* in notice form, and these notices may be obtained from any Office of Federal Contract Compliance Programs office.

(c) The Contractor's compliance with Executive Order 11246, as amended, and the regulations in 41 CFR 60-4 shall be based on (1) its implementation of the Equal Opportunity clause, (2) specific affirmative action obligations required by the clause entitled "Affirmative Action Compliance Requirements for Construction," and (3) its efforts to meet the goals. The hours of minority and female employment and training must be substantially uniform throughout the length of the contract, and in each trade. The Contractor shall make a good faith effort to employ minorities and women evenly on each of its projects. The transfer of minority or female employees or trainees from Contractor to Contractor, or from project to project, for the sole purpose of meeting the Contractor's goals shall be a violation of the contract, Executive Order 11246, as amended, and the regulations in 41 CFR 60-4. Compliance with the goals will be measured against the total work hours performed.

(d) The Contractor shall provide written notification to the Deputy Assistant Secretary for Federal Contract Compliance, U.S. Department of Labor, within 10 working days following award of any construction subcontract in excess of \$10,000 at any tier for construction work under the contract resulting from this solicitation. The notification shall list the-

- (1) Name, address, and telephone number of the subcontractor;
- (2) Employer's identification number of the subcontractor;
- (3) Estimated dollar amount of the subcontract;
- (4) Estimated starting and completion dates of the subcontract; and
- (5) Geographical area in which the subcontract is to be performed.

(e) As used in this Notice, and in any contract resulting from this solicitation, the "covered area" is Chickamauga Lock and Dam near Chattanooga, TN in Hamilton County.

(End of provision)

52.222-40 Notification of Employee Rights Under the National Labor Relations Act.

(Dec 2010)

As prescribed in 22.1605 , insert the following clause:

Notification of Employee Rights Under the National Labor Relations Act (Dec 2010)

(a) During the term of this contract, the Contractor shall post an employee notice, of such size and in such form, and containing such content as prescribed by the Secretary of Labor, in conspicuous places in and about its plants and offices where employees covered by the National Labor Relations Act engage in activities relating to the performance of the contract, including all places where notices to employees are customarily posted both physically and electronically, in the languages employees speak, in accordance with 29 CFR 471.2 (d) and (f).

(1) Physical posting of the employee notice shall be in conspicuous places in and about the Contractor's plants and offices so that the notice is prominent and readily seen by employees who are covered by the National Labor Relations Act and engage in activities related to the performance of the contract.

(2) If the Contractor customarily posts notices to employees electronically, then the Contractor shall also post the required notice electronically by displaying prominently, on any website that is maintained by the Contractor and is customarily used for notices to employees about terms and conditions of employment, a link to the Department of Labor's website that contains the full text of the poster. The link to the Department's website, as referenced in (b)(3) of this section, must read, "Important Notice about Employee Rights to Organize and Bargain Collectively with Their Employers."

(b) This required employee notice, printed by the Department of Labor, may be-

(1) Obtained from the Division of Interpretations and Standards, Office of Labor-Management Standards, U.S. Department of Labor, 200 Constitution Avenue, NW., Room N-5609, Washington, DC 20210, (202) 693-0123, or from any field office of the Office of Labor-Management Standards or Office of Federal Contract Compliance Programs;

(2) Provided by the Federal contracting agency if requested;

(3) Downloaded from the Office of Labor-Management Standards Web site at <http://www.dol.gov/olms/regs/compliance/EO13496.htm>; or

(4) Reproduced and used as exact duplicate copies of the Department of Labor's official poster.

(c) The required text of the employee notice referred to in this clause is located at Appendix A, Subpart A, 29 CFR Part 471.

(d) The Contractor shall comply with all provisions of the employee notice and related rules, regulations, and orders of the Secretary of Labor.

(e) In the event that the Contractor does not comply with the requirements set forth in paragraphs (a) through (d) of this clause, this contract may be terminated or suspended in whole or in part, and the Contractor may be suspended or debarred in accordance with 29 CFR 471.14 and subpart 9.4. Such other sanctions or remedies may be imposed as are provided by 29 CFR part 471, which implements Executive Order 13496 or as otherwise provided by law.

(f) Subcontracts.

(1) The Contractor shall include the substance of this clause, including this paragraph (f), in every subcontract that exceeds \$10,000 and will be performed wholly or partially in the United States, unless exempted by the rules, regulations, or orders of the Secretary of Labor issued pursuant to section 3 of Executive Order 13496 of January 30, 2009, so that such provisions will be binding upon each subcontractor.

(2) The Contractor shall not procure supplies or services in a way designed to avoid the applicability of Executive Order 13496 or this clause.

(3) The Contractor shall take such action with respect to any such subcontract as may be directed by the Secretary of Labor as a means of enforcing such provisions, including the imposition of sanctions for noncompliance.

(4) However, if the Contractor becomes involved in litigation with a subcontractor, or is threatened with such involvement, as a result of such direction, the Contractor may request the United States, through the Secretary of Labor, to enter into such litigation to protect the interests of the United States.

(End of clause)

52.223-3 Hazardous Material Identification and Material Safety Data.

(Feb 2021)

As prescribed in 23.304(a)(1), insert the following clause:

Hazardous Material Identification and Material Safety Data (Feb 2021)

(a) "Hazardous material," as used in this clause, includes any material defined as hazardous under the latest version of Federal Standard No.313 (including revisions adopted during the term of the contract).

(b) The offeror must list any hazardous material, as defined in paragraph (a) of this clause, to be delivered under this contract. The hazardous material shall be properly identified and include any applicable identification number, such as National Stock Number or Special Item Number. This information shall also be included on the Material Safety Data Sheet submitted under this contract.

Material (If none, insert None)	Identification No.
---------------------------------	--------------------

_____	_____
_____	_____
_____	_____

(c) This list must be updated during performance of the contract whenever the Contractor determines that any other material to be delivered under this contract is hazardous.

(d) The apparently successful offeror agrees to submit, for each item as required prior to award, a Material Safety Data Sheet, meeting the requirements of 29 CFR 1910.1200(g) and the latest version of Federal Standard No.313, for all hazardous material identified in paragraph (b) of this clause. Data shall be submitted in accordance with Federal Standard No.313, whether or not the apparently successful offeror is the actual manufacturer of these items. Failure to submit the Material Safety Data Sheet prior to award may result in the apparently successful offeror being considered nonresponsible and ineligible for award.

(e) If, after award, there is a change in the composition of the item(s) or a revision to Federal Standard No.313, which renders incomplete or inaccurate the data submitted under paragraph (d) of this clause, the Contractor shall promptly notify the Contracting Officer and resubmit the data.

- (f) Neither the requirements of this clause nor any act or failure to act by the Government shall relieve the Contractor of any responsibility or liability for the safety of Government, Contractor, or subcontractor personnel or property.
- (g) Nothing contained in this clause shall relieve the Contractor from complying with applicable Federal, State, and local laws, codes, ordinances, and regulations (including the obtaining of licenses and permits) in connection with hazardous material.
- (h) The Government's rights in data furnished under this contract with respect to hazardous material are as follows:
- (1) To use, duplicate and disclose any data to which this clause is applicable. The purposes of this right are to-
 - (i) Apprise personnel of the hazards to which they may be exposed in using, handling, packaging, transporting, or disposing of hazardous materials;
 - (ii) Obtain medical treatment for those affected by the material; and
 - (iii) Have others use, duplicate, and disclose the data for the Government for these purposes.
 - (2) To use, duplicate, and disclose data furnished under this clause, in accordance with paragraph (h)(1) of this clause, in precedence over any other clause of this contract providing for rights in data.
 - (3) The Government is not precluded from using similar or identical data acquired from other sources.
- (End of clause)

52.223-9 Estimate of Percentage of Recovered Material Content for EPA-Designated Items. (May 2008)

As prescribed in 23.109(b)(2), insert the following clause:

Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008)

(a) *Definitions.* As used in this clause-

Postconsumer material means a material or finished product that has served its intended use and has been discarded for disposal or recovery, having completed its life as a consumer item. Postconsumer material is a part of the broader category of "recovered material."

"Recovered material" means waste materials and by-products recovered or diverted from solid waste, but the term does not include those materials and by-products generated from, and commonly reused within, an original manufacturing process.

(b) The Contractor, on completion of this contract, shall-

- (1) Estimate the percentage of the total recovered material content for EPA-designated item(s) delivered and/or used in contract performance, including, if applicable, the percentage of post-consumer material content; and
- (2) Submit this estimate to Chickamauga Lock Resident Office, 5518 Trailhead Drive, Chattanooga, TN 37145.

(End of clause)

52.225-11 Buy American-Construction Materials under Trade Agreements. (Nov 2023)

As prescribed in 25.1102(c), insert the following clause:

Buy American-Construction Materials under Trade Agreements (Nov 2023)

(a) *Definitions.* As used in this clause-

Caribbean Basin country construction material means a construction material that-

- (1) Is wholly the growth, product, or manufacture of a Caribbean Basin country; or
- (2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a Caribbean Basin country into a new and different construction material distinct from the materials from which it was transformed.

Commercially available off-the-shelf (COTS) item-

(1) Means any item of supply (including construction material) that is-

- (i) A commercial product (as defined in paragraph (1) of the definition of "commercial product" at Federal Acquisition Regulation (FAR) 2.101);

- (ii) Sold in substantial quantities in the commercial marketplace; and
 - (iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and
- (2) Does not include bulk cargo, as defined in 46 U.S.C.40102(4), such as agricultural products and petroleum products.

Component means an article, material, or supply incorporated directly into a construction material.

Construction material means an article, material, or supply brought to the construction site by the Contractor or subcontractor for incorporation into the building or work. The term also includes an item brought to the site preassembled from articles, materials, or supplies. However, emergency life safety systems, such as emergency lighting, fire alarm, and audio evacuation systems, that are discrete systems incorporated into a public building or work and that are produced as complete systems, are evaluated as a single and distinct construction material regardless of when or how the individual parts or components of those systems are delivered to the construction site. Materials purchased directly by the Government are supplies, not construction material.

Cost of components means-

- (1) For components purchased by the Contractor, the acquisition cost, including transportation costs to the place of incorporation into the construction material (whether or not such costs are paid to a domestic firm), and any applicable duty (whether or not a duty-free entry certificate is issued); or
- (2) For components manufactured by the Contractor, all costs associated with the manufacture of the component, including transportation costs as described in paragraph (1) of this definition, plus allocable overhead costs, but excluding profit. Cost of components does not include any costs associated with the manufacture of the construction material.

Critical component means a component that is mined, produced, or manufactured in the United States and deemed critical to the U.S. supply chain. The list of critical components is at FAR 25.105.

Critical item means a domestic construction material or domestic end product that is deemed critical to U.S. supply chain resiliency. The list of critical items is at FAR 25.105.

Designated country means any of the following countries:

- (1) A World Trade Organization Government Procurement Agreement (WTO GPA) country (Armenia, Aruba, Australia, Austria, Belgium, Bulgaria, Canada, Croatia, Cyprus, Czech Republic, Denmark, Estonia, Finland, France, Germany, Greece, Hong Kong, Hungary, Iceland, Ireland, Israel, Italy, Japan, Korea (Republic of), Latvia, Liechtenstein, Lithuania, Luxembourg, Malta, Moldova, Montenegro, Netherlands, New Zealand, North Macedonia, Norway, Poland, Portugal, Romania, Singapore, Slovak Republic, Slovenia, Spain, Sweden, Switzerland, Taiwan, Ukraine, or United Kingdom);
- (2) A Free Trade Agreement (FTA) country (Australia, Bahrain, Chile, Colombia, Costa Rica, Dominican Republic, El Salvador, Guatemala, Honduras, Korea (Republic of), Mexico, Morocco, Nicaragua, Oman, Panama, Peru, or Singapore);
- (3) A least developed country (Afghanistan, Angola, Bangladesh, Benin, Bhutan, Burkina Faso, Burundi, Cambodia, Central African Republic, Chad, Comoros, Democratic Republic of Congo, Djibouti, Equatorial Guinea, Eritrea, Ethiopia, Gambia, Guinea, Guinea-Bissau, Haiti, Kiribati, Laos, Lesotho, Liberia, Madagascar, Malawi, Mali, Mauritania, Mozambique, Nepal, Niger, Rwanda, Samoa, Sao Tome and Principe, Senegal, Sierra Leone, Solomon Islands, Somalia, South Sudan, Tanzania, Timor-Leste, Togo, Tuvalu, Uganda, Vanuatu, Yemen, or Zambia); or
- (4) A Caribbean Basin country (Antigua and Barbuda, Aruba, Bahamas, Barbados, Belize, Bonaire, British Virgin Islands, Curacao, Dominica, Grenada, Guyana, Haiti, Jamaica, Montserrat, Saba, St. Kitts and Nevis, St. Lucia, St. Vincent and the Grenadines, Sint Eustatius, Sint Maarten, or Trinidad and Tobago).

Designated country construction material means a construction material that is a WTO GPA country construction material, an FTA country construction material, a least developed country construction material, or a Caribbean Basin country construction material.

Domestic construction material means-

- (1) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both-
 - (i) An unmanufactured construction material mined or produced in the United States; or
 - (ii) A construction material manufactured in the United States, if-
 - (A) The cost of its components mined, produced, or manufactured in the United States exceeds 60 percent of the cost of all its components, except that the percentage will be 65 percent for items delivered in calendar years 2024 through 2028 and 75 percent for items delivered starting in calendar year 2029.
 - (B) The construction material is a COTS item; or

(2) For construction material that consists wholly or predominantly of iron or steel or a combination of both, a construction material manufactured in the United States if the cost of foreign iron and steel constitutes less than 5 percent of the cost of all components used in such construction material. The cost of foreign iron and steel includes but is not limited to the cost of foreign iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the construction material and a good faith estimate of the cost of all foreign iron or steel components excluding COTS fasteners. Iron or steel components of unknown origin are treated as foreign. If the construction material contains multiple components, the cost of all the materials used in such construction material is calculated in accordance with the definition of "cost of components".

Fastener means a hardware device that mechanically joins or affixes two or more objects together. Examples of fasteners are nuts, bolts, pins, rivets, nails, clips, and screws.

Foreign construction material means a construction material other than a domestic construction material.

Foreign iron and steel means iron or steel products not produced in the United States. Produced in the United States means that all manufacturing processes of the iron or steel must take place in the United States, from the initial melting stage through the application of coatings, except metallurgical processes involving refinement of steel additives. The origin of the elements of the iron or steel is not relevant to the determination of whether it is domestic or foreign.

Free Trade Agreement country construction material means a construction material that-

- (1) Is wholly the growth, product, or manufacture of a Free Trade Agreement (FTA) country; or
- (2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a FTA country into a new and different construction material distinct from the materials from which it was transformed.

Least developed country construction material means a construction material that-

- (1) Is wholly the growth, product, or manufacture of a least developed country; or
- (2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a least developed country into a new and different construction material distinct from the materials from which it was transformed.

Predominantly of iron or steel or a combination of both means that the cost of the iron and steel content exceeds 50 percent of the total cost of all its components. The cost of iron and steel is the cost of the iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the product and a good faith estimate of the cost of iron or steel components excluding COTS fasteners.

Steel means an alloy that includes at least 50 percent iron, between 0.02 and 2 percent carbon, and may include other elements.

United States means the 50 States, the District of Columbia, and outlying areas.

WTO GPA country construction material means a construction material that-

- (1) Is wholly the growth, product, or manufacture of a WTO GPA country; or
- (2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a WTO GPA country into a new and different construction material distinct from the materials from which it was transformed.

(b) Construction materials.

(1) This clause implements 41 U.S.C. chapter 83, Buy American, by providing a preference for domestic construction material. In accordance with 41 U.S.C. 1907, the domestic content test of the Buy American statute is waived for construction material that is a COTS item, except that for construction material that consists wholly or predominantly of iron or steel or a combination of both, the domestic content test is applied only to the iron and steel content of the construction material, excluding COTS fasteners. (See FAR 12.505(a)(2)). In addition, the Contracting Officer has determined that the WTO GPA and Free Trade Agreements (FTAs) apply to this acquisition. Therefore, the Buy American restrictions are waived for designated country construction materials.

(2) The Contractor shall use only domestic or designated country construction material in performing this contract, except as provided in paragraphs (b)(3) and (b)(4) of this clause.

(3) The requirement in paragraph (b)(2) of this clause does not apply to information technology that is a commercial product or to the construction materials or components listed by the Government as follows:

_____ [Contracting Officer to list applicable excepted materials or indicate "none"]

(4) The Contracting Officer may add other foreign construction material to the list in paragraph (b)(3) of this clause if the Government determines that-

(i) The cost of domestic construction material would be unreasonable.

(A) For domestic construction material that is not a critical item or does not contain critical components.

(1) The cost of a particular domestic construction material subject to the restrictions of the Buy American statute is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent;

(2) For construction material that is not a COTS item and does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest offer of foreign construction material that is manufactured in the United States and exceeds 55 percent domestic content as a domestic offer and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(4)(i)(A)(1) of this clause.

(3) The procedures in paragraph (b)(4)(i)(A)(2) of this clause will no longer apply as of January 1, 2030.

(B) For domestic construction material that is a critical item or contains critical components.

(1) The cost of a particular domestic construction material that is a critical item or contains critical components, subject to the requirements of the Buy American statute, is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent plus the additional preference factor identified for the critical item or construction material containing critical components listed at FAR 25.105.

(2) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest offer of foreign construction material that is manufactured in the United States and exceeds 55 percent domestic content as a domestic offer, and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(4)(i)(B)(1) of this clause.

(3) The procedures in paragraph (b)(4)(i)(B)(2) of this clause will no longer apply as of January 1, 2030.

(ii) The application of the restriction of the Buy American Act to a particular construction material would be impracticable or inconsistent with the public interest; or

(iii) The construction material is not mined, produced, or manufactured in the United States in sufficient and reasonably available commercial quantities of a satisfactory quality.

(c) Request for determination of inapplicability of the Buy American statute.

(1)

(i) Any Contractor request to use foreign construction material in accordance with paragraph (b)(4) of this clause shall include adequate information for Government evaluation of the request, including-

(A) A description of the foreign and domestic construction materials;

(B) Unit of measure;

(C) Quantity;

(D) Price;

(E) Time of delivery or availability;

(F) Location of the construction project;

(G) Name and address of the proposed supplier; and

(H) A detailed justification of the reason for use of foreign construction materials cited in accordance with paragraph (b)(3) of this clause.

(ii) A request based on unreasonable cost shall include a reasonable survey of the market and a completed price comparison table in the format in paragraph (d) of this clause.

(iii) The price of construction material shall include all delivery costs to the construction site and any applicable duty (whether or not a duty-free certificate may be issued).

(iv) Any Contractor request for a determination submitted after contract award shall explain why the Contractor could not reasonably foresee the need for such determination and could not have requested the determination before contract award. If the Contractor does not submit a satisfactory explanation, the Contracting Officer need not make a determination.

(2) If the Government determines after contract award that an exception to the Buy American statute applies and the Contracting Officer and the Contractor negotiate adequate consideration, the Contracting Officer will modify the contract to allow use of the foreign construction material. However, when the basis for the exception is the unreasonable price of a domestic construction material, adequate consideration is not less than the differential established in paragraph (b)(4)(i) of this clause.

(3) Unless the Government determines that an exception to the Buy American statute applies, use of foreign construction material is noncompliant with the Buy American statute.

(d) Data. To permit evaluation of requests under paragraph (c) of this clause based on unreasonable cost, the Contractor shall include the following information and any applicable supporting data based on the survey of suppliers:

Foreign and Domestic Construction Materials Price Comparison			
Construction Material Description	Unit of Measure	Quantity	Price (Dollars)*
Item1			
Foreign construction material	_____	_____	_____
Domestic construction material	_____	_____	_____
Item1			
Foreign construction material	_____	_____	_____
Domestic construction material	_____	_____	_____

[* Include all delivery costs to the construction site and any applicable duty (whether or not a duty-free entry certificate is issued)].

[List name, address, telephone number, and contact for suppliers surveyed. Attach copy of response; if oral, attach summary.]

[Include other applicable supporting information.]

(End of clause)

52.228-1 Bid Guarantee.

(Sep 1996)

Bid Guarantee (Sept 1996)

(a) Failure to furnish a bid guarantee in the proper form and amount, by the time set for opening of bids, may be cause for rejection of the bid.

(b) The bidder shall furnish a bid guarantee in the form of a firm commitment, *e.g.*, bid bond supported by good and sufficient surety or sureties acceptable to the Government, postal money order, certified check, cashier's check, irrevocable letter of credit, or, under Treasury Department regulations, certain bonds or notes of the United States. The Contracting Officer will return bid guarantees, other than bid bonds-

(1) To unsuccessful bidders as soon as practicable after the opening of bids; and

(2) To the successful bidder upon execution of contractual documents and bonds (including any necessary coinsurance or reinsurance agreements), as required by the bid as accepted.

(c) The amount of the bid guarantee shall be twenty (20) percent of the bid price or \$3,000,000.00, whichever is less.

(d) If the successful bidder, upon acceptance of its bid by the Government within the period specified for acceptance, fails to execute all contractual documents or furnish executed bond(s) within 10 days after receipt of the forms by the bidder, the Contracting Officer may terminate the contract for default.

(e) In the event the contract is terminated for default, the bidder is liable for any cost of acquiring the work that exceeds the amount of its bid, and the bid guarantee is available to offset the difference.

(End of clause)

52.228-15 Performance and Payment Bonds-Construction (Deviation 2020-O0016) (Jun 2020) Deviation 2020-O0016 (Apr 2020)

52.228-15 Performance and Payment Bonds-Construction.

As prescribed in 28.102-3(a), insert a clause substantially as follows:

PERFORMANCE AND PAYMENT BONDS-CONSTRUCTION (APR 2020) (DEVIATION 2020-O0016)

(a) Definitions. As used in this clause-

Original contract price means the award price of the contract; or, for requirements contracts, the price payable for the estimated total quantity; or, for indefinite-quantity contracts, the price payable for the specified minimum quantity. Original contract price does not include the price of any options, except those options exercised at the time of contract award.

(b) Amount of required bonds. Unless the resulting contract price is \$150,000 or less, the successful offeror shall furnish performance and payment bonds to the Contracting Officer as follows:

(1) Performance bonds (Standard Form 25, except that no seal is required). The penal amount of performance bonds at the time of contract award shall be 100 percent of the original contract price.

(2) Payment bonds (Standard Form 25A, except that no seal is required). The penal amount of payment bonds at the time of contract award shall be 100 percent of the original contract price.

(3) Additional bond protection.

(i) The Government may require additional performance and payment bond protection if the contract price is increased. The increase in protection generally will equal 100 percent of the increase in contract price.

(ii) The Government may secure the additional protection by directing the Contractor to increase the penal amount of the existing bond or to obtain an additional bond.

(c) Furnishing executed bonds. The Contractor shall furnish all executed bonds, including any necessary reinsurance agreements, to the Contracting Officer, within the time period specified in the Bid Guarantee provision of the solicitation, or otherwise specified by the Contracting Officer, but in any event, before starting work.

(d) Surety or other security for bonds. The bonds shall be in the form of firm commitment, supported by corporate sureties whose names appear on the list contained in Treasury Department Circular 570, individual sureties, or by other acceptable security such as postal money order, certified check, cashier's check, irrevocable letter of credit, or, in accordance with Treasury Department regulations, certain bonds or notes of the United States. Treasury Circular 570 is published in the Federal Register or may be obtained from the U.S. Department of the Treasury, Financial Management Service, Surety Bond Branch, 3700 East West Highway, Room 6F01, Hyattsville, MD 20782. Or via the internet at <http://www.fms.treas.gov/c570/>.

(e) Notice of subcontractor waiver of protection (40 U.S.C. 3133(c)). Any waiver of the right to sue on the payment bond is void unless it is in writing, signed by the person whose right is waived, and executed after such person has first furnished labor or material for use in the performance of the contract.

(End of clause)

52.232-5 Payments under Fixed-Price Construction Contracts.

(May 2014)

As prescribed in 32.111(a)(5), insert the following clause:

Payments under Fixed-Price Construction Contracts (May 2014)

(a) Payment of price. The Government shall pay the Contractor the contract price as provided in this contract.

(b) Progress payments. The Government shall make progress payments monthly as the work proceeds, or at more frequent intervals as determined by the Contracting Officer, on estimates of work accomplished which meets the standards of quality established under the contract, as approved by the Contracting Officer.

(1) The Contractor's request for progress payments shall include the following substantiation:

(i) An itemization of the amounts requested, related to the various elements of work required by the contract covered by the payment requested.

(ii) A listing of the amount included for work performed by each subcontractor under the contract.

(iii) A listing of the total amount of each subcontract under the contract.

(iv) A listing of the amounts previously paid to each such subcontractor under the contract.

(v) Additional supporting data in a form and detail required by the Contracting Officer.

(2) In the preparation of estimates, the Contracting Officer may authorize material delivered on the site and preparatory work done to be taken into consideration. Material delivered to the Contractor at locations other than the site also may be taken into consideration if-

(i) Consideration is specifically authorized by this contract; and

(ii) The Contractor furnishes satisfactory evidence that it has acquired title to such material and that the material will be used to perform this contract.

(c) Contractor certification. Along with each request for progress payments, the Contractor shall furnish the following certification, or payment shall not be made: (However, if the Contractor elects to delete paragraph (c)(4) from the certification, the certification is still acceptable.)

I hereby certify, to the best of my knowledge and belief, that-

(1) The amounts requested are only for performance in accordance with the specifications, terms, and conditions of the contract;

(2) All payments due to subcontractors and suppliers from previous payments received under the contract have been made, and timely payments will be made from the proceeds of the payment covered by this certification, in accordance with subcontract agreements and the requirements of Chapter 39 of Title 31, United States Code;

(3) This request for progress payments does not include any amounts which the prime contractor intends to withhold or retain from a subcontractor or supplier in accordance with the terms and conditions of the subcontract; and

(4) This certification is not to be construed as final acceptance of a subcontractor's performance.

____ (Name)

____ (Title)

____ (Date)

(d) Refund of unearned amounts. If the Contractor, after making a certified request for progress payments, discovers that a portion or all of such request constitutes a payment for performance by the Contractor that fails to conform to the specifications, terms, and conditions of this contract (hereinafter referred to as the "unearned amount"), the Contractor shall-

(1) Notify the Contracting Officer of such performance deficiency; and

(2) Be obligated to pay the Government an amount (computed by the Contracting Officer in the manner provided in paragraph (j) of this clause) equal to interest on the unearned amount from the 8 thday after the date of receipt of the unearned amount until-

(i) The date the Contractor notifies the Contracting Officer that the performance deficiency has been corrected; or

(ii) The date the Contractor reduces the amount of any subsequent certified request for progress payments by an amount equal to the unearned amount.

(e) Retainage. If the Contracting Officer finds that satisfactory progress was achieved during any period for which a progress payment is to be made, the Contracting Officer shall authorize payment to be made in full. However, if satisfactory progress has not been made, the Contracting Officer may retain a maximum of 10 percent of the amount of the payment until satisfactory progress is achieved. When the work is substantially complete, the Contracting Officer may retain from previously withheld funds and future progress payments that amount the Contracting Officer considers adequate for protection of the Government and shall release to the Contractor all the remaining withheld funds. Also, on completion and acceptance of each separate building, public work, or other division of the contract, for which the price is stated separately in the contract, payment shall be made for the completed work without retention of a percentage.

(f) Title, liability, and reservation of rights. All material and work covered by progress payments made shall, at the time of payment, become the sole property of the Government, but this shall not be construed as-

(1) Relieving the Contractor from the sole responsibility for all material and work upon which payments have been made or the restoration of any damaged work; or

(2) Waiving the right of the Government to require the fulfillment of all of the terms of the contract.

(g) Reimbursement for bond premiums. In making these progress payments, the Government shall, upon request, reimburse the Contractor for the amount of premiums paid for performance and payment bonds (including coinsurance and reinsurance agreements, when applicable) after the Contractor has furnished evidence of full payment to the surety. The retainage provisions in paragraph (e) of this clause shall not apply to that portion of progress payments attributable to bond premiums.

(h) Final payment. The Government shall pay the amount due the Contractor under this contract after-

(1) Completion and acceptance of all work;

(2) Presentation of a properly executed voucher; and

(3) Presentation of release of all claims against the Government arising by virtue of this contract, other than claims, in stated amounts, that the Contractor has specifically excepted from the operation of the release. A release may also be required of the assignee if the Contractor's claim to amounts payable under this contract has been assigned under the Assignment of Claims Act of 1940 (31 U.S.C.3727 and 41 U.S.C.6305).

(i) Limitation because of undefinitized work. Notwithstanding any provision of this contract, progress payments shall not exceed 80 percent on work

accomplished on undefinitized contract actions. A "contract action" is any action resulting in a contract, as defined in FAR subpart 2.1, including contract modifications for additional supplies or services, but not including contract modifications that are within the scope and under the terms of the contract, such as contract modifications issued pursuant to the Changes clause, or funding and other administrative changes.

(j) Interest computation on unearned amounts. In accordance with 31 U.S.C.3903(c)(1), the amount payable under paragraph (d)(2) of this clause shall be-

(1) Computed at the rate of average bond equivalent rates of 91-day Treasury bills auctioned at the most recent auction of such bills prior to the date the Contractor receives the unearned amount; and

(2) Deducted from the next available payment to the Contractor.

(End of clause)

52.232-27 Prompt Payment for Construction Contracts.

(Jan 2017)

As prescribed in 32.908(b), insert the following clause:

Prompt Payment for Construction Contracts (Jan 2017)

Notwithstanding any other payment terms in this contract, the Government will make invoice payments under the terms and conditions specified in this clause. The Government considers payment as being made on the day a check is dated or the date of an electronic funds transfer. Definitions of pertinent terms are set forth in sections 2.101, 32.001, and 32.902 of the Federal Acquisition Regulation. All days referred to in this clause are calendar days, unless otherwise specified. (However, see paragraph (a)(3) concerning payments due on Saturdays, Sundays, and legal holidays.)

(a) Invoice payments-

(1) Types of invoice payments. For purposes of this clause, there are several types of invoice payments that may occur under this contract, as follows:

(i) Progress payments, if provided for elsewhere in this contract, based on Contracting Officer approval of the estimated amount and value of work or services performed, including payments for reaching milestones in any project.

(A) The due date for making such payments is 14 days after the designated billing office receives a proper payment request. If the designated billing office fails to annotate the payment request with the actual date of receipt at the time of receipt, the payment due date is the 14 thday after the date of the Contractor's payment request, provided the designated billing office receives a proper payment request and there is no disagreement over quantity, quality, or Contractor compliance with contract requirements.

(B) The due date for payment of any amounts retained by the Contracting Officer in accordance with the clause at 52.232-5, Payments Under Fixed-Price Construction Contracts, is as specified in the contract or, if not specified, 30 days after approval by the Contracting Officer for release to the Contractor.

(ii) Final payments based on completion and acceptance of all work and presentation of release of all claims against the Government arising by virtue of the contract, and payments for partial deliveries that have been accepted by the Government (e.g., each separate building, public work, or other division of the contract for which the price is stated separately in the contract).

(A) The due date for making such payments is the later of the following two events:

(1) The 30 thday after the designated billing office receives a proper invoice from the Contractor.

(2) The 30 thday after Government acceptance of the work or services completed by the Contractor. For a final invoice when the payment amount is subject to contract settlement actions (e.g., release of claims), acceptance is deemed to occur on the effective date of the contract settlement.

(B) If the designated billing office fails to annotate the invoice with the date of actual receipt at the time of receipt, the invoice payment due date is the 30 thday after the date of the Contractor's invoice, provided the designated billing office receives a proper invoice and there is no disagreement over quantity, quality, or Contractor compliance with contract requirements.

(2) Contractor's invoice. The Contractor shall prepare and submit invoices to the designated billing office specified in the contract. A proper invoice must include the items listed in paragraphs (a)(2)(i) through (a)(2)(xi) of this clause. If the invoice does not comply with these requirements, the designated billing office must return it within 7 days after receipt, with the reasons why it is not a proper invoice. When computing any interest penalty owed the Contractor, the Government will take into account if the Government notifies the Contractor of an improper invoice in an untimely manner.

(i) Name and address of the Contractor.

(ii) Invoice date and invoice number. (The Contractor should date invoices as close as possible to the date of mailing or transmission.)

(iii) Contract number or other authorization for work or services performed (including order number and line item number).

(iv) Description of work or services performed.

(v) Delivery and payment terms (e.g., discount for prompt payment terms).

(vi) Name and address of Contractor official to whom payment is to be sent (must be the same as that in the contract or in a proper notice of assignment).

(vii) Name (where practicable), title, phone number, and mailing address of person to notify in the event of a defective invoice.

(viii) For payments described in paragraph (a)(1)(i) of this clause, substantiation of the amounts requested and certification in accordance with the requirements of the clause at 52.232-5, Payments Under Fixed-Price Construction Contracts.

(ix) Taxpayer Identification Number (TIN). The Contractor shall include its TIN on the invoice only if required elsewhere in this contract.

(x) Electronic funds transfer (EFT) banking information.

(A) The Contractor shall include EFT banking information on the invoice only if required elsewhere in this contract.

(B) If EFT banking information is not required to be on the invoice, in order for the invoice to be a proper invoice, the Contractor shall have submitted correct EFT banking information in accordance with the applicable solicitation provision (e.g., 52.232-38, Submission of Electronic Funds Transfer Information with Offer), contract clause (e.g., 52.232-33, Payment by Electronic Funds Transfer-System for Award Management, or 52.232-34, Payment by Electronic Funds Transfer-Other Than System for Award Management), or applicable agency procedures.

(C) EFT banking information is not required if the Government waived the requirement to pay by EFT.

(xi) Any other information or documentation required by the contract.

(3) Interest penalty. The designated payment office will pay an interest penalty automatically, without request from the Contractor, if payment is not made by the due date and the conditions listed in paragraphs (a)(3)(i) through (a)(3)(iii) of this clause are met, if applicable. However, when the due date falls on a Saturday, Sunday, or legal holiday, the designated payment office may make payment on the following working day without incurring a late payment interest penalty.

(i) The designated billing office received a proper invoice.

(ii) The Government processed a receiving report or other Government documentation authorizing payment and there was no disagreement over quantity, quality, Contractor compliance with any contract term or condition, or requested progress payment amount.

(iii) In the case of a final invoice for any balance of funds due the Contractor for work or services performed, the amount was not subject to further contract settlement actions between the Government and the Contractor.

(4) Computing penalty amount. The Government will compute the interest penalty in accordance with the Office of Management and Budget prompt payment regulations at 5 CFR Part 1315.

(i) For the sole purpose of computing an interest penalty that might be due the Contractor for payments described in paragraph (a)(1)(ii) of this clause, Government acceptance or approval is deemed to occur constructively on the 7 thday after the Contractor has completed the work or services in accordance with the terms and conditions of the contract. If actual acceptance or approval occurs within the constructive acceptance or approval period, the Government will base the determination of an interest penalty on the actual date of acceptance or approval. Constructive acceptance or constructive approval requirements do not apply if there is a disagreement over quantity, quality, or Contractor compliance with a contract provision. These requirements also do not compel Government officials to accept work or services, approve Contractor estimates, perform contract administration functions, or make payment prior to fulfilling their responsibilities.

(ii) The prompt payment regulations at 5 CFR1315.10(c) do not require the Government to pay interest penalties if payment delays are due to disagreement between the Government and the Contractor over the payment amount or other issues involving contract compliance, or on amounts temporarily withheld or retained in accordance with the terms of the contract. The Government and the Contractor shall resolve claims involving disputes, and any interest that may be payable in accordance with the clause at FAR 52.233-1, Disputes.

(5) Discounts for prompt payment. The designated payment office will pay an interest penalty automatically, without request from the Contractor, if the Government takes a discount for prompt payment improperly. The Government will calculate the interest penalty in accordance with the prompt payment regulations at 5 CFR Part 1315.

(6) Additional interest penalty.

(i) The designated payment office will pay a penalty amount, calculated in accordance with the prompt payment regulations at 5 CFR Part 1315 in addition to the interest penalty amount only if-

(A) The Government owes an interest penalty of \$1 or more;

(B) The designated payment office does not pay the interest penalty within 10 days after the date the invoice amount is paid; and

(C) The Contractor makes a written demand to the designated payment office for additional penalty payment, in accordance with paragraph (a)(6)(ii)

of this clause, postmarked not later than 40 days after the date the invoice amount is paid.

(ii)

(A) The Contractor shall support written demands for additional penalty payments with the following data. The Government will not request any additional data. The Contractor shall-

(1) Specifically assert that late payment interest is due under a specific invoice, and request payment of all overdue late payment interest penalty and such additional penalty as may be required;

(2) Attach a copy of the invoice on which the unpaid late payment interest was due; and

(3) State that payment of the principal has been received, including the date of receipt.

(B) If there is no postmark or the postmark is illegible-

(1) The designated payment office that receives the demand will annotate it with the date of receipt provided the demand is received on or before the 40 thday after payment was made; or

(2) If the designated payment office fails to make the required annotation, the Government will determine the demand's validity based on the date the Contractor has placed on the demand, provided such date is no later than the 40 thday after payment was made.

(b) Contract financing payments. If this contract provides for contract financing, the Government will make contract financing payments in accordance with the applicable contract financing clause.

(c) Subcontract clause requirements. The Contractor shall include in each subcontract for property or services (including a material supplier) for the purpose of performing this contract the following:

(1) Prompt payment for subcontractors. A payment clause that obligates the Contractor to pay the subcontractor for satisfactory performance under its subcontract not later than 7 days from receipt of payment out of such amounts as are paid to the Contractor under this contract.

(2) Interest for subcontractors. An interest penalty clause that obligates the Contractor to pay to the subcontractor an interest penalty for each payment not made in accordance with the payment clause-

(i) For the period beginning on the day after the required payment date and ending on the date on which payment of the amount due is made; and

(ii) Computed at the rate of interest established by the Secretary of the Treasury, and published in the Federal Register, for interest payments under 41 U.S.C. 7109 in effect at the time the Contractor accrues the obligation to pay an interest penalty.

(3) Subcontractor clause flowdown. A clause requiring each subcontractor to-

(i) Include a payment clause and an interest penalty clause conforming to the standards set forth in paragraphs (c)(1) and (c)(2) of this clause in each of its subcontracts; and

(ii) Require each of its subcontractors to include such clauses in their subcontracts with each lower-tier subcontractor or supplier.

(d) Subcontract clause interpretation. The clauses required by paragraph (c) of this clause shall not be construed to impair the right of the Contractor or a subcontractor at any tier to negotiate, and to include in their subcontract, provisions that-

(1) Retainage permitted. Permit the Contractor or a subcontractor to retain (without cause) a specified percentage of each progress payment otherwise due to a subcontractor for satisfactory performance under the subcontract without incurring any obligation to pay a late payment interest penalty, in accordance with terms and conditions agreed to by the parties to the subcontract, giving such recognition as the parties deem appropriate to the ability of a subcontractor to furnish a performance bond and a payment bond;

(2) Withholding permitted. Permit the Contractor or subcontractor to make a determination that part or all of the subcontractor's request for payment may be withheld in accordance with the subcontract agreement; and

(3) Withholding requirements. Permit such withholding without incurring any obligation to pay a late payment penalty if-

(i) A notice conforming to the standards of paragraph (g) of this clause previously has been furnished to the subcontractor; and

(ii) The Contractor furnishes to the Contracting Officer a copy of any notice issued by a Contractor pursuant to paragraph (d)(3)(i) of this clause.

(e) Subcontractor withholding procedures. If a Contractor, after making a request for payment to the Government but before making a payment to a subcontractor for the subcontractor's performance covered by the payment request, discovers that all or a portion of the payment otherwise due such subcontractor is subject to withholding from the subcontractor in accordance with the subcontract agreement, then the Contractor shall-

(1) Subcontractor notice. Furnish to the subcontractor a notice conforming to the standards of paragraph (g) of this clause as soon as practicable upon ascertaining the cause giving rise to a withholding, but prior to the due date for subcontractor payment;

(2) Contracting Officer notice. Furnish to the Contracting Officer, as soon as practicable, a copy of the notice furnished to the subcontractor pursuant to paragraph (e)(1) of this clause;

(3) Subcontractor progress payment reduction. Reduce the subcontractor's progress payment by an amount not to exceed the amount specified in the notice of withholding furnished under paragraph (e)(1) of this clause;

(4) Subsequent subcontractor payment. Pay the subcontractor as soon as practicable after the correction of the identified subcontract performance deficiency, and-

(i) Make such payment within-

(A) Sevendays after correction of the identified subcontract performance deficiency (unless the funds therefor must be recovered from the Government because of a reduction under paragraph (e)(5)(i)) of this clause; or

(B) Sevendays after the Contractor recovers such funds from the Government; or

(ii) Incur an obligation to pay a late payment interest penalty computed at the rate of interest established by the Secretary of the Treasury, and published in the Federal Register, for interest payments under 41 U.S.C. 7109 in effect at the time the Contractor accrues the obligation to pay an interest penalty;

(5) Notice to Contracting Officer. Notify the Contracting Officer upon-

(i) Reduction of the amount of any subsequent certified application for payment; or

(ii) Payment to the subcontractor of any withheld amounts of a progress payment, specifying-

(A) The amounts withheld under paragraph (e)(1) of this clause; and

(B) The dates that such withholding began and ended; and

(6) Interest to Government. Be obligated to pay to the Government an amount equal to interest on the withheld payments (computed in the manner provided in 31 U.S.C.3903(c)(1)), from the 8 thday after receipt of the withheld amounts from the Government until-

(i) The day the identified subcontractor performance deficiency is corrected; or

(ii) The date that any subsequent payment is reduced under paragraph (e)(5)(i) of this clause.

(f) Third-party deficiency reports-

(1) Withholding from subcontractor. If a Contractor, after making payment to a first-tier subcontractor, receives from a supplier or subcontractor of the first-tier subcontractor (hereafter referred to as a "second-tier subcontractor") a written notice in accordance with 40 U.S.C. 3133, asserting a deficiency in such first-tier subcontractor's performance under the contract for which the Contractor may be ultimately liable, and the Contractor determines that all or a portion of future payments otherwise due such first-tier subcontractor is subject to withholding in accordance with the subcontract agreement, the Contractor may, without incurring an obligation to pay an interest penalty under paragraph (e)(6) of this clause-

(i) Furnish to the first-tier subcontractor a notice conforming to the standards of paragraph (g) of this clause as soon as practicable upon making such determination; and

(ii) Withhold from the first-tier subcontractor's next available progress payment or payments an amount not to exceed the amount specified in the notice of withholding furnished under paragraph (f)(1)(i) of this clause.

(2) Subsequent payment or interest charge. As soon as practicable, but not later than 7 days after receipt of satisfactory written notification that the identified subcontract performance deficiency has been corrected, the Contractor shall-

(i) Pay the amount withheld under paragraph (f)(1)(ii) of this clause to such first-tier subcontractor; or

(ii) Incur an obligation to pay a late payment interest penalty to such first-tier subcontractor computed at the rate of interest established by the Secretary of the Treasury, and published in the Federal Register, for interest payments under 41 U.S.C. 7109 in effect at the time the Contractor accrues the obligation to pay an interest penalty.

(g) Written notice of subcontractor withholding. The Contractor shall issue a written notice of any withholding to a subcontractor (with a copy furnished to the Contracting Officer), specifying-

(1) The amount to be withheld;

(2) The specific causes for the withholding under the terms of the subcontract; and

(3) The remedial actions to be taken by the subcontractor in order to receive payment of the amounts withheld.

(h) Subcontractor payment entitlement. The Contractor may not request payment from the Government of any amount withheld or retained in

accordance with paragraph (d) of this clause until such time as the Contractor has determined and certified to the Contracting Officer that the subcontractor is entitled to the payment of such amount.

(i) Prime-subcontractor disputes. A dispute between the Contractor and subcontractor relating to the amount or entitlement of a subcontractor to a payment or a late payment interest penalty under a clause included in the subcontract pursuant to paragraph (c) of this clause does not constitute a dispute to which the Government is a party. The Government may not be interpleaded in any judicial or administrative proceeding involving such a dispute.

(j) Preservation of prime-subcontractor rights. Except as provided in paragraph (i) of this clause, this clause shall not limit or impair any contractual, administrative, or judicial remedies otherwise available to the Contractor or a subcontractor in the event of a dispute involving late payment or nonpayment by the Contractor or deficient subcontract performance or nonperformance by a subcontractor.

(k) Non-recourse for prime contractor interest penalty. The Contractor's obligation to pay an interest penalty to a subcontractor pursuant to the clauses included in a subcontract under paragraph (c) of this clause shall not be construed to be an obligation of the Government for such interest penalty. A cost-reimbursement claim may not include any amount for reimbursement of such interest penalty.

(l) Overpayments. If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall-

(1) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-

(i) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(ii) Affected contract number and delivery order number if applicable;

(iii) Affected line item or subline item, if applicable; and

(iv) Contractor point of contact.

(2) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(End of clause)

52.236-1 Performance of Work by the Contractor.

(Apr 1984)

Performance of Work by the Contractor (Apr 1984)

The Contractor shall perform on the site, and with its own organization, work equivalent to at least twenty-five (25%) percent of the total amount of work to be performed under the contract. This percentage may be reduced by a supplemental agreement to this contract if, during performing the work, the Contractor requests a reduction and the Contracting Officer determines that the reduction would be to the advantage of the Government.

(End of clause)

52.236-4 Physical Data.

(Apr 1984)

As prescribed in 36.504, insert the following clause in solicitations and contracts when a fixed-price construction contract is contemplated and physical data (e.g., test borings, hydrographic, weather conditions data) will be furnished or made available to offerors. All information to be furnished or made available to offerors before award that pertains to the performance of the work should be identified in the clause. When paragraphs are not applicable they may be deleted.

Physical Data (Apr 1984)

Data and information furnished or referred to below is for the Contractor's information. The Government shall not be responsible for any interpretation of or conclusion drawn from the data or information by the Contractor.

(a) The indications of physical conditions on the drawings and in the specifications are the result of site investigations by the Government.

(b) Weather conditions: The values in the table below represent the number of days in each month that the Government anticipates adverse impacts to construction operations due to inclement weather (temperature, precipitation, wind) and/or high water elevations in the river (tailwater gage reading above elevation 315.00 NGVD29).

JAN	FEB	MAR	APR	MAY	JUN	JUL	AUG	SEP	OCT	NOV	DEC
5	4	4	3	2	1	3	1	2	3	3	4

Note: These days are based on a 5-day work week.

(End of clause)

52.236-26 Preconstruction Conference.

(Feb 1995)

As prescribed in 36.522 , insert the following clause:

Preconstruction Conference (Feb 1995)

If the Contracting Officer decides to conduct a preconstruction conference, the successful offeror will be notified and will be required to attend. The Contracting Officer's notification will include specific details regarding the date, time, and location of the conference, any need for attendance by subcontractors, and information regarding the items to be discussed.

(End of clause)

52.244-2 Subcontracts.

(Jun 2020)

As prescribed in 44.204(a)(1), insert the following clause:

Subcontracts (Jun 2020)

(a) Definitions. As used in this clause-

"Approved purchasing system" means a Contractor's purchasing system that has been reviewed and approved in accordance with part 44 of the Federal Acquisition Regulation (FAR).

"Consent to subcontract" means the Contracting Officer's written consent for the Contractor to enter into a particular subcontract.

Subcontract means any contract, as defined in FAR subpart 2.1, entered into by a subcontractor to furnish supplies or services for performance of the prime contract or a subcontract. It includes, but is not limited to, purchase orders, and changes and modifications to purchase orders.

(b) When this clause is included in a fixed-price type contract, consent to subcontract is required only on unpriced contract actions (including unpriced modifications or unpriced delivery orders), and only if required in accordance with paragraph (c) or (d) of this clause.

(c) If the Contractor does not have an approved purchasing system, consent to subcontract is required for any subcontract that-

(1) Is of the cost-reimbursement, time-and-materials, or labor-hour type; or

(2) Is fixed-price and exceeds-

(i) For a contract awarded by the Department of Defense, the Coast Guard, or the National Aeronautics and Space Administration, the greater of the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract; or

(ii) For a contract awarded by a civilian agency other than the Coast Guard and the National Aeronautics and Space Administration, either the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract.

(d) If the Contractor has an approved purchasing system, the Contractor nevertheless shall obtain the Contracting Officer's written consent before placing the following subcontracts:

(e)

(1) The Contractor shall notify the Contracting Officer reasonably in advance of placing any subcontract or modification thereof for which consent is required under paragraph (b), (c), or (d) of this clause, including the following information:

(i) A description of the supplies or services to be subcontracted.

(ii) Identification of the type of subcontract to be used.

(iii) Identification of the proposed subcontractor.

(iv) The proposed subcontract price.

(v) The subcontractor's current, complete, and accurate certified cost or pricing data and Certificate of Current Cost or Pricing Data, if required by other contract provisions.

(vi) The subcontractor's Disclosure Statement or Certificate relating to Cost Accounting Standards when such data are required by other provisions of this contract.

(vii) A negotiation memorandum reflecting-

(A) The principal elements of the subcontract price negotiations;

(B) The most significant considerations controlling establishment of initial or revised prices;

(C) The reason certified cost or pricing data were or were not required;

(D) The extent, if any, to which the Contractor did not rely on the subcontractor's certified cost or pricing data in determining the price objective and in negotiating the final price;

(E) The extent to which it was recognized in the negotiation that the subcontractor's certified cost or pricing data were not accurate, complete, or current; the action taken by the Contractor and the subcontractor; and the effect of any such defective data on the total price negotiated;

(F) The reasons for any significant difference between the Contractor's price objective and the price negotiated; and

(G) A complete explanation of the incentive fee or profit plan when incentives are used. The explanation shall identify each critical performance element, management decisions used to quantify each incentive element, reasons for the incentives, and a summary of all trade-off possibilities considered.

(2) The Contractor is not required to notify the Contracting Officer in advance of entering into any subcontract for which consent is not required under paragraph (b), (c), or (d) of this clause.

(f) Unless the consent or approval specifically provides otherwise, neither consent by the Contracting Officer to any subcontract nor approval of the Contractor's purchasing system shall constitute a determination-

(1) Of the acceptability of any subcontract terms or conditions;

(2) Of the allowability of any cost under this contract; or

(3) To relieve the Contractor of any responsibility for performing this contract.

(g) No subcontract or modification thereof placed under this contract shall provide for payment on a cost-plus-a-percentage-of-cost basis, and any fee payable under cost-reimbursement type subcontracts shall not exceed the fee limitations in FAR 15.404-4(c)(4)(i).

(h) The Contractor shall give the Contracting Officer immediate written notice of any action or suit filed and prompt notice of any claim made against the Contractor by any subcontractor or vendor that, in the opinion of the Contractor, may result in litigation related in any way to this contract, with respect to which the Contractor may be entitled to reimbursement from the Government.

(i) The Government reserves the right to review the Contractor's purchasing system as set forth in FAR subpart 44.3.

(j) Paragraphs (c) and (e) of this clause do not apply to the following subcontracts, which were evaluated during negotiations:

(End of clause)

52.246-21 Warranty of Construction. (Alternate I)

(Mar 1994) Alternate I (Apr 1984)

Alternate I (Apr 1984). If the Government specifies in the contract the use of any equipment by "brand name and model," the contracting officer may add a paragraph substantially the same as the following paragraph (k) to the basic clause:

(k) Defects in design or manufacture of equipment specified by the Government on a "brand name and model" basis, shall not be included in this warranty. In this event, the Contractor shall require any subcontractors, manufacturers, or suppliers thereof to execute their warranties, in writing, directly to the Government.

52.248-3 Value Engineering-Construction.

(Oct 2020)

As prescribed in 48.202, insert the following clause:

Value Engineering-Construction (Oct 2020)

(a) General. The Contractor is encouraged to develop, prepare, and submit value engineering change proposals (VECP's) voluntarily. The Contractor shall share in any instant contract savings realized from accepted VECP's, in accordance with paragraph (f) of this clause.

(b) Definitions. "Collateral costs," as used in this clause, means agency costs of operation, maintenance, logistic support, or Government-furnished property.

Collateral savings, as used in this clause, means those measurable net reductions resulting from a VECP in the agency's overall projected collateral costs, exclusive of acquisition savings, whether or not the acquisition cost changes.

Contractor's development and implementation costs, as used in this clause, means those costs the Contractor incurs on a VECP specifically in developing, testing, preparing, and submitting the VECP, as well as those costs the Contractor incurs to make the contractual changes required by Government acceptance of a VECP.

Government costs, as used in this clause, means those agency costs that result directly from developing and implementing the VECP, such as any net increases in the cost of testing, operations, maintenance, and logistic support. The term does not include the normal administrative costs of processing the VECP.

Instant contract savings, as used in this clause, means the estimated reduction in Contractor cost of performance resulting from acceptance of the VECP, minus allowable Contractor's development and implementation costs, including subcontractors' development and implementation costs (see paragraph (h) of this clause).

Value engineering change proposal (VECP) means a proposal that-

(1) Requires a change to this, the instant contract, to implement; and

(2) Results in reducing the contract price or estimated cost without impairing essential functions or characteristics; provided, that it does not involve a change-

(i) In deliverable end item quantities only; or

(ii) To the contract type only.

(c) VECP preparation. As a minimum, the Contractor shall include in each VECP the information described in paragraphs (c)(1) through (7) of this clause. If the proposed change is affected by contractually required configuration management or similar procedures, the instructions in those procedures relating to format, identification, and priority assignment shall govern VECP preparation. The VECP shall include the following:

(1) A description of the difference between the existing contract requirement and that proposed, the comparative advantages and disadvantages of each, a justification when an item's function or characteristics are being altered, and the effect of the change on the end item's performance.

(2) A list and analysis of the contract requirements that must be changed if the VECP is accepted, including any suggested specification revisions.

(3) A separate, detailed cost estimate for (i) the affected portions of the existing contract requirement and (ii) the VECP. The cost reduction associated with the VECP shall take into account the Contractor's allowable development and implementation costs, including any amount attributable to subcontracts under paragraph (h) of this clause.

(4) A description and estimate of costs the Government may incur in implementing the VECP, such as test and evaluation and operating and support costs.

(5) A prediction of any effects the proposed change would have on collateral costs to the agency.

(6) A statement of the time by which a contract modification accepting the VECP must be issued in order to achieve the maximum cost reduction, noting any effect on the contract completion time or delivery schedule.

(7) Identification of any previous submissions of the VECP, including the dates submitted, the agencies and contract numbers involved, and previous Government actions, if known.

(d) Submission. The Contractor shall submit VECP's to the Resident Engineer at the worksite, with a copy to the Contracting Officer.

(e) Government action.

(1) The Contracting Officer will notify the Contractor of the status of the VECP within 45 calendar days after the contracting office receives it. If additional time is required, the Contracting Officer will notify the Contractor within the 45-day period and provide the reason for the delay and the expected date of the decision. The Government will process VECP's expeditiously; however, it will not be liable for any delay in acting upon a VECP.

(2) If the VECP is not accepted, the Contracting Officer will notify the Contractor in writing, explaining the reasons for rejection. The Contractor may withdraw any VECP, in whole or in part, at any time before it is accepted by the Government. The Contracting Officer may require that the Contractor provide written notification before undertaking significant expenditures for VECP effort.

(3) Any VECP may be accepted, in whole or in part, by the Contracting Officer's award of a modification to this contract citing this clause. The Contracting Officer may accept the VECP, even though an agreement on price reduction has not been reached, by issuing the Contractor a notice to proceed with the change. Until a notice to proceed is issued or a contract modification applies a VECP to this contract, the Contractor shall perform in

accordance with the existing contract. The decision to accept or reject all or part of any VECP is a unilateral decision made solely at the discretion of the Contracting Officer.

(f) Sharing-

(1) Rates. The Government's share of savings is determined by subtracting Government costs from instant contract savings and multiplying the result by-

- (i) 45 percent for fixed-price contracts; or
- (ii) 75 percent for cost-reimbursement contracts.

(2) Payment. Payment of any share due the Contractor for use of a VECP on this contract shall be authorized by a modification to this contract to-

- (i) Accept the VECP;
- (ii) Reduce the contract price or estimated cost by the amount of instant contract savings; and
- (iii) Provide the Contractor's share of savings by adding the amount calculated to the contract price or fee.

(g) Collateral savings. If a VECP is accepted, the Contracting Officer will increase the instant contract amount by 20 percent of any projected collateral savings determined to be realized in a typical year of use after subtracting any Government costs not previously offset. However, the Contractor's share of collateral savings will not exceed the contract's firm-fixed-price or estimated cost, at the time the VECP is accepted, or \$100,000, whichever is greater. The Contracting Officer is the sole determiner of the amount of collateral savings.

(h) Subcontracts. The Contractor shall include an appropriate value engineering clause in any subcontract of \$75,000 or more and may include one in subcontracts of lesser value. In computing any adjustment in this contract's price under paragraph (f) of this clause, the Contractor's allowable development and implementation costs shall include any subcontractor's allowable development and implementation costs clearly resulting from a VECP accepted by the Government under this contract, but shall exclude any value engineering incentive payments to a subcontractor. The Contractor may choose any arrangement for subcontractor value engineering incentive payments; provided, that these payments shall not reduce the Government's share of the savings resulting from the VECP.

(i) Data. The Contractor may restrict the Government's right to use any part of a VECP or the supporting data by marking the following legend on the affected parts:

These data, furnished under the Value Engineering-Construction clause of contract ____, shall not be disclosed outside the Government or duplicated, used, or disclosed, in whole or in part, for any purpose other than to evaluate a value engineering change proposal submitted under the clause. This restriction does not limit the Government's right to use information contained in these data if it has been obtained or is otherwise available from the Contractor or from another source without limitations.

If a VECP is accepted, the Contractor hereby grants the Government unlimited rights in the VECP and supporting data, except that, with respect to data qualifying and submitted as limited rights technical data, the Government shall have the rights specified in the contract modification implementing the VECP and shall appropriately mark the data. (The terms "unlimited rights" and "limited rights" are defined in part 27 of the Federal Acquisition Regulation.)

(End of clause)

52.252-2 Clauses Incorporated by Reference.

(Feb 1998)

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

FAR: <https://www.acquisition.gov/>

DFARS: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

(End of clause)

52.252-4 Alterations in Contract.

(Apr 1984)

As prescribed in 52.107(d), insert the following clause in solicitations and contracts in order to revise or supplement, as necessary, other parts of the contract, or parts of the solicitation that apply after contract award, except for any clause authorized for use with a deviation. Include clear identification of what is being altered.

Alterations in Contract (Apr 1984)

Portions of this contract are altered as follows:

None at this time. ____ ____

(End of clause)

52.252-6 Authorized Deviations in Clauses.

(Nov 2020)

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Defense Federal Acquisition Regulation Supplement (48 CFR Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

DFARS Clauses Incorporated by Full Text

252.215-7008 Only One Offer.

(Dec 2022)

As prescribed at 215.408(3), use the following provision:

ONLY ONE OFFER (DEC 2022)

(a) Cost or pricing data requirements. After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to-

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) Canadian Commercial Corporation. If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable ____ [U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-3(a)(1) with the notification].

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) Subcontracts. Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

252.236-7001 Contract Drawings and Specifications.

(Aug 2000)

As prescribed in 236.570(a), use the following clause:

CONTRACT DRAWINGS AND SPECIFICATIONS (AUG 2000)

(a) The Government will provide to the Contractor, without charge, one set of contract drawings and specifications, except publications incorporated into the technical provisions by reference, in electronic or paper media as chosen by the Contracting Officer.

(b) The Contractor shall-

- (1) Check all drawings furnished immediately upon receipt;
- (2) Compare all drawings and verify the figures before laying out the work;
- (3) Promptly notify the Contracting Officer of any discrepancies;
- (4) Be responsible for any errors that might have been avoided by complying with this paragraph (b); and
- (5) Reproduce and print contract drawings and specifications as needed.

(c) In general--

- (1) Large-scale drawings shall govern small-scale drawings; and
- (2) The Contractor shall follow figures marked on drawings in preference to scale measurements.

(d) Omissions from the drawings or specifications or the misdescription of details of work that are manifestly necessary to carry out the intent of the drawings and specifications, or that are customarily performed, shall not relieve the Contractor from performing such omitted or misdescribed details of the work. The Contractor shall perform such details as if fully and correctly set forth and described in the drawings and specifications.

(e) The work shall conform to the specifications and the contract drawings identified on the following index of drawings:

Title
FIO - Chick Lock Consolidation 100% Folio 1.pdf
FIO - Chick Lock Consolidation 100% Folio 2.pdf
FIO - Chick Lock Consolidation 100% Folio 3.pdf
FIO - Chick Lock Consolidation 100% Folio 4.pdf
FIO_Miscellaneous Reference Drawings.pdf
FIO_Record Drawings Folio 1 of 2.pdf
FIO_Record Drawings Folio 2 of 2.pdf
FIO_Shop Drawings for DS Cross-Over Bridge and US Lock Wall Bridge Access.pdf
FIO_Shop Drawings for Miter Gates_Culvert Valves_Culvert Bulkheads and Airseals.pdf
FIO_W912P5-06-C-0009_As-Builts for Combined Cofferdam.pdf
FIO_W912P5-09-B-0019_AACF Plans for Miter Gates_Culvert Valves_Culvert Bulkheads and Airseals.pdf
FIO_W912P5-10-C-0008_As-Builts for Approach Wall Beams.pdf

FIO_W912P5-15-C-0021_AACF_CS_Plans for Cofferdam Stabilization.pdf
FIO_W912P5-16-C-0007_As-builts For Lock Excavation.pdf
FIO_W912P5-16-C-0007_AACF Plans for DS Cross-Over Bridge and US Lock Wall Bridge-Acess.pdf
FIO_W912P5-16-C-0007_AACF_LE_Plans.pdf
FIO_W912P5-17-C-0007_AACF_LC_Plans_Folio 1 of 4.pdf
FIO_W912P5-17-C-0007_AACF_LC_Plans_Folio 2 of 4.pdf
FIO_W912P5-17-C-0007_AACF_LC_Plans_Folio 3 of 4.pdf
FIO_W912P5-17-C-0007_AACF_LC_Plans_Folio 4 of 4.pdf
FIO_W912P5-21-C-0009_AACF_UAW_Plans.pdf
W912P525-RA-001_Price Schedule_AWD_RTA (CKL Approach Wall and Decommissioning.xlsx)

W912P5-25-RA001_TPlans_AWD_Folio 1 of 5.pdf
W912P5-25-RA001_TPlans_AWD_Folio 2 of 5.pdf
W912P5-25-RA001_TPlans_AWD_Folio 3 of 5.pdf
W912P5-25-RA001_TPlans_AWD_Folio 4 of 5.pdf

W912P5-25-RA001_TPlans_AWD_Folio 5 of 5.pdf
W912P5-25-RA001_TPlans_AWD_For-Information-Only-Drawings-Folio.pdf
W912P5-25-RA001_TSpecs_Appendix A - Forms and Attachments_AWD_RTA.pdf
W912P5-25-RA001_TSpecs_AWD_RTA.pdf

(End of clause)

252.236-7004 Payment for Mobilization and Demobilization.

(Dec 1991)

PAYMENT FOR MOBILIZATION AND DEMOBILIZATION (DEC 1991)

(a) The Government will pay all costs for the mobilization and demobilization of all of the Contractor's plant and equipment at the contract lump sum price for this item.

(1) Sixty (60%) percent of the lump sum price upon completion of the contractor's mobilization at the work site.

(2) The remaining forty (40%) percent upon completion of demobilization.

(b) The Contracting Officer may require the Contractor to furnish cost data to justify this portion of the bid if the Contracting Officer believes that the percentages in paragraphs (a)(1) and (2) of this clause do not bear a reasonable relation to the cost of the work in this contract.

(1) Failure to justify such price to the satisfaction of the Contracting Officer will result in payment, as determined by the Contracting Officer, of-

(i) Actual mobilization costs at completion of mobilization;

(ii) Actual demobilization costs at completion of demobilization; and

(iii) The remainder of this item in the final payment under this contract.

(2) The Contracting Officer's determination of the actual costs in paragraph (b)(1) of this clause is not subject to appeal.

(End of clause)

Section 00 71 00 - Contracting Definitions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.202-1	Definitions.	Jun 2020		

Section 00 73 00 - Supplementary Conditions

Supplementary Conditions

1. SCHEDULE OF INSURANCE:

The Corps shall require all its contractors to procure and maintain a policy or policies of Commercial General Liability insurance and if applicable, Umbrella or Excess Liability policies of at least One Million Dollars (\$1,000,000) per occurrence, Automobile general liability insurance with combined single limits of at least One Million Dollars (\$1,000,000) per occurrence, and Workmen's Compensation and Employer's Liability Insurance of at least One Hundred Thousand (\$100,000) per occurrence.

The policies of insurance shall be written by an insurance company or companies which shall be rated "A" or Better by A.M. Best Company and are licensed to do business in the State of Tennessee, or which are an accepted surplus lines carrier. The above requested commercial general liability coverage and any umbrella coverage shall be "Occurrence" form policies. USACE contractors shall require its insurer(s) to amend the above liability policies to provide that:

- (a) TVA, the U.S., their directors, officers, agents, and employees are Additional Insureds under this policy; and
- (b) It states that it is primary, noncontributory insurance; and
- (c) It includes an insurer's waiver of rights of subrogation in favor of TVA, The U.S., their directors, officers, agents and employees; and
- (d) It contains a cross liability or severability of interest clause; and
- (e) It states the policy may not be canceled, non-renewed, or materially changed by the insurer without giving thirty (30) days prior written notice to TVA (except that notice of cancellation for nonpayment of premium may be ten (10) days).

If requested by TVA, the Corps shall promptly provide or cause its contractors to provide a certified copy of the insurance policy. The Corps will promptly notify TVA of any accidents on and /or damage to the licensed premises or the facilities thereon. TVA may require the Corps to require its contractors at any time to obtain and maintain increased minimum amounts of insurance coverage to the extent it reasonably believes such increased minimum amounts of insurance coverage are necessary in accordance with standard insurance industry practice or to cover changes caused by inflation.

Before commencing work under this contract, the contractor shall certify to the Contracting Officer in writing that the required insurance has been obtained.

The contractor shall insert the substance of the clause entitled "Insurance-Work on a Government Installation (FAR 52.228-5), "in subcontracts under this contract that require work on a Government Installation and shall require subcontractors to provide and maintain the insurance required above.

2. TIME EXTENSION FOR UNUSUALLY SEVERE WEATHER:

a. This provision specifies the procedure for the determination of time extensions for unusually severe weather in accordance with FAR clause 52.249-10, "Default (Fixed Price Construction)". In order for the Contracting Officer to award a time extension the following conditions must be satisfied.

- 1) The weather experienced at the project site during the contract period must be found to be unusually severe, that is, more severe than the adverse weather anticipated for the project location during any given month.
- 2) The unusually severe weather must actually cause a delay to the completion of the project. The delay must be beyond the control and without the fault or negligence of the contractor. See FAR clause 52.236-4, "Physical Data", for the typical number of anticipated adverse weather days. The number of days shall be exceeded for a given month before a time extension is granted.

b. Upon acknowledgement of the Notice to Proceed (NTP) and continuing throughout the contract, the Contractor will record on the daily contractor's quality control (CQC) report, the occurrence of adverse weather and resultant impact to the normally scheduled work. Actual adverse weather delay days must prevent work on critical activities for 50 percent or more of the contractor's scheduled workday. The number of actual adverse weather delay days shall include days impacted by actual adverse weather (even if adverse weather occurred in a previous month), be calculated chronologically from the first to the last day of each month and be recorded as full days. If the number of actual adverse weather delay days exceeds the number of days anticipated in FAR clause 52.236-4, the Contracting Officer will convert any qualifying days to calendar days, giving full consideration for equivalent fair-weather workdays, and issue a modification in accordance with FAR clause 52.249-10.

3. ADMINISTRATIVE DISPUTE RESOLUTION:

In furtherance of Federal policy and the Administrative Dispute Resolution Act of 1990, ADR Act, Pub. L. 101-552, the Contracting Officer will try to resolve all post award acquisition issues in controversy by mutual agreement of the parties. Interested parties are encouraged to use alternative resolution procedures to the maximum extent practicable in accordance with the authority and the requirement of ADR ACT.

4. PROJECT LABOR AGREEMENT (PLA):

Offerors shall submit a proposal subject to the Project Labor Agreement (PLA) requirement set forth in Section 00 21 00 of this solicitation. Any PLA reached pursuant to the PLA requirements in this solicitation does not change the terms of the contract or provide for any price adjustment by the Government. See FAR provision 52.222-33, Notice of Project Labor Agreement, and clause 52.222-34, Project Labor Agreement, for definitions and requirements pertaining to the use of a PLA for this contract.

5. GOVERNMENT FURNISHED PROPERTY (GFP) LISTING (IAW FAR 45.102): Reference technical specifications.

IT E M	DESCRIPTION	Q T Y	U N I T	UNIT COST	TOTAL COST
1	Light Pole 40' Valmont DS70 Series poles with 12' mast arms, no fixtures included.	6	E A	\$9,000. 00	\$54,000. 00
2	Upstream water level sensor Endress + Hauser Deltapoint Model FMB53; and mounting hardware	1	E A	\$7,000. 00	\$7,000.0 0
3	HAZMAT Room Fans and Motors (Fan 13 and Fan 14)	2	E A	\$3,000. 00	\$6,000.0 0
4	Heating Coil HC-3 and Unit Heater UH-11	1	E A	\$800.00	\$800.00
5	Fixture Type Q, CLASS 1, DIVISION II QUALIFIED for HAZMAT Room	5	E A	\$600.00	\$3,000.0 0
6	Lithonia Lighting Model TWH 400M TB PE PLI, for outside HAZMAT Room	1	E A	\$800.00	\$800.00
7	Alarm Horns, Fire Protection	2	E A	\$300.00	\$600.00
8	Alarm Lights, Fire Protection	3	E A	\$250.00	\$750.00
9	Heat Detectors, Fire Protection	3	E A	\$250.00	\$750.00
10	Manual Pull Stations, Fire Protection	2	E A	\$250.00	\$500.00
11	Security cameras; Outdoor Rated Dome PTZ Cameras (Bosch exterior PTZ dome camera or approved equal)	1 2	E A	\$3,000. 00	\$36,000. 00
12	Water discharge warning light	1	E A	\$300.00	\$300.00

13	Water discharge warning horn	1	E A	\$800.00	\$800.00
14	Upstream Winch Unit and Towing Bitts. This includes all components as shown on DWG 64W524-LC, 64W527-LC, & 64W528-LC)	1	E A	\$1,200,000.00	\$1,200,000.00
15	Approach Wall Beams (See drawing 61W520-10 thru 13) Stored at Watts Bar	3 4	E A	\$350,000.00	\$11,900,000.00
16	Needle Dam to assist in dewatering the existing lock chamber	2	E A	\$2,000,000.00	\$4,000,000.00
17	Bulkhead to assist in dewatering the existing lock chamber	4	E A	\$32,500.00	\$130,000.00
18	Trash Racks	4	E A	\$10,000.00	\$40,000.00
19	Handrails, Thrust Block, Closure Plug	1	JB	\$12,000.00	\$12,000.00

(a) The current estimated value of all Government Furnished Property (GFP) is \$17,393,300.00

(b) Unique-item identifier or equivalent: N/A

(c) Condition of Property: The GFP is to be furnished in an "as-is" condition and is suitable for use. Reference the technical specifications and Section 01 91 13, paragraph 1.8, for instructions on physical inspection and handling instructions.

(d) The contractor is responsible for all costs related to making the property available for use, such as payment of all transportation costs.

(e) Evaluation procedures and information to be provided with Offeror's proposal: See Section 00 21 00, paragraph 5.1(d).

6. Defense Priorities and Allocation System (DPAS) Rating:

This contract has a DPAS rating of DO-C2.

Overall Contract Delivery Period

From date of lead time event to beginning of performance
60 Calendar Days
Date of Notice to Proceed Receipt

From date of lead time event to completion of performance
2008 Calendar Days
Date of Notice to Proceed Receipt

Section 01 00 00 - General Requirements

Wage Determination

The Wage Determination (Davis Bacon Act WD TN20250145 03Jan2025 (Hamilton County, TN Heavy Construction).pdf)) is attached as a separate document but is considered to be part of this solicitation/contract. This document has 5 pages.

Requirements

Chickamauga Lock Approach Walls and Decommissioning construction contract with base and options.